

# UPSC and SPSC - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

[illegible]

*Original deterministic study visual; labels are explanatory, not textual quotations.*

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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# Polity 28 - UPSC and SPSC - Complete Topic Package

**Control date:** 28 August 2026, Asia/Kolkata **Tags:** [FACT] directly supported by a named constitutional, statutory, judicial, official or audited local source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive legal or institutional control; [LIMIT] boundary or qualification preventing overstatement. **Answer discipline:** claim -> named evidence -> analysis -> qualification. **Scope:** constitutional rationale and evolution; Articles 315-323 article by article; UPSC, SPSC and Joint State Public Service Commission; composition, appointment, tenure, removal and post-office restrictions; examinations and consultation; recruitment boundaries; independence and accountability; judicial review; examination integrity; current controls and reforms.

## Package method, source priority and current legal control

- [FACT] Local source order followed: basic/UPSC-and-SPSC.md -> advanced/28\_UPSC-and-SPSC.md -> basic/Public-Services.md, basic/Administrative-Tribunals.md, basic/Statutory-Regulatory-and-Quasi-Judicial-Bodies.md, judiciary and reservation owners only where a boundary required it -> local OCR-searchable *Indian Polity* by M. Laxmikanth -> all recent routed-PYQ and integration-audit ledgers searched precisely for Public Service Commission, Article 315, Article 320, SPSC and Joint State Public Service Commission -> official constitutional, statutory, regulatory, judicial, UPSC and SPSC material.
- [FACT] Structural and validation references only: Polity 25, 26 and 27 complete packages. Their subject content has not been imported.
- [CURRENT] The official Legislative Department consolidation checked is *The Constitution of India [As on 1 May 2024]*. Articles 315-323 were controlled clause by clause against that text.
- [CURRENT] The India Code consolidation of the **Public Examinations (Prevention of Unfair Means) Act, 2024**, checked as on 21 July 2025, records commencement on **21 June 2024** and expressly lists examinations conducted by the **Union Public Service Commission** in its Schedule.
- [CURRENT] The **Public Examinations (Prevention of Unfair Means) Rules, 2024**, G.S.R. 342(E), were notified on 23 June 2024 and published on 24 June 2024. They prescribe institutional roles, computer-based-test standards, incident reporting and monitoring architecture.
- [CURRENT] G.S.R. 203(E), dated 15 March 2024, amended the Union Public Service Commission (Exemption from Consultation) Regulations, 1958 for specified Group A and Group B posts up to pay level 13A filled by named deputation/re-employment, short-term-contract, absorption or composite methods.
- [LIMIT] That 2024 amendment is **not** a general constitutional exemption called "lateral entry". Every lateral recruitment must be analysed through the post's recruitment rules, level, mode of filling, reservation law, the operative consultation regulations and the actual role assigned to the UPSC.
- [CURRENT] The official UPSC portal checked on 28 August 2026 identifies **Dr Ajay Kumar** as Chairman. This officeholder statement is date-controlled and must be rechecked before reuse.
- [CURRENT] Official UPSC and State PSC portals continue to use examination calendars/programmes, results pages, recruitment notices, contact/grievance channels, RTI disclosures and conference/newsletter mechanisms. These are transparency instruments, not substitutes for lawful selection rules or reasoned remedies.
- [LIMIT] This package does not freeze current chairperson/member names, vacancies, candidate counts, annual calendars or changing examination statistics.
- [LIMIT] No adopted constitutional "collegium" for PSC appointments was located. Proposals for broader selection committees are reform arguments, not current law.

## Authoritative control set

| Source                                                                    | Named evidence used                                                                | Control supplied                                     |
|---------------------------------------------------------------------------|------------------------------------------------------------------------------------|------------------------------------------------------|
| Constitution of India, Part XIV, Chapter II                               | Articles 315-323                                                                   | complete constitutional architecture                 |
| Constitution, Articles 14, 16(4), 309-312, 323A and 335                   | equality, reservation, service rules, All-India Services and tribunals             | recruitment boundaries                               |
| Public Examinations Act, 2024, India Code                                 | sections 2-18 and Schedule                                                         | UPSC coverage, unfair means, offences and monitoring |
| Public Examinations Rules, 2024                                           | rules 3-9                                                                          | CBT standards, reporting and monitoring              |
| UPSC Exemption from Consultation Regulations, 1958, amended 15 March 2024 | specified consultation exclusions                                                  | current consultation boundary                        |
| <i>State of U.P. v. Manbodhan Lal Srivastava</i> (1957)                   | Article 320 consultation is directory, not mandatory                               | non-consultation doctrine                            |
| <i>Ashok Kumar Yadav v. State of Haryana</i> (1985)                       | bias and arbitrariness in PSC selection                                            | fair-selection doctrine                              |
| <i>Shankarsan Dash v. Union of India</i> (1991)                           | select-list inclusion creates no indefeasible appointment right                    | appointment boundary                                 |
| <i>K. Manjusree v. State of Andhra Pradesh</i> (2008)                     | selection criteria cannot be introduced after the process                          | rules-of-the-game doctrine                           |
| <i>M.V. Thimmaiah v. UPSC</i> (2007)                                      | limited review of expert selection recommendations                                 | judicial-restraint doctrine                          |
| <i>Tej Prakash Pathak v. Rajasthan High Court</i> , 2024 INSC 847         | Constitution Bench restatement of recruitment-rule stability and non-arbitrariness | current doctrinal control                            |
| Official UPSC/SPSC portals                                                | calendars, results, contact/RTI and conference material                            | current transparency examples                        |

## Roadmap

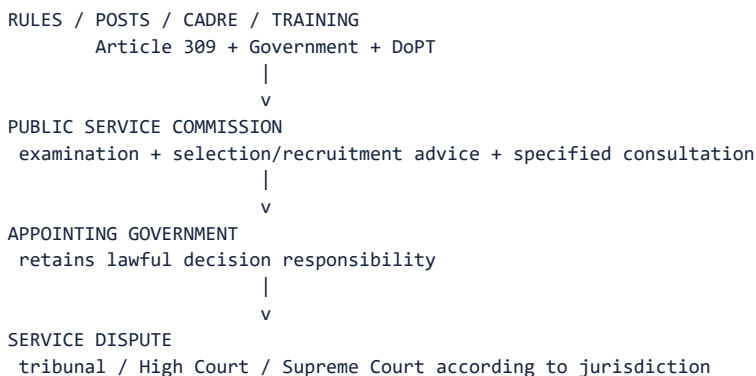
| Stage                   | Coverage                                                     | Exam outcome                                  |
|-------------------------|--------------------------------------------------------------|-----------------------------------------------|
| Foundation              | rationale, evolution and Part XIV placement                  | explain why recruitment is constitutionalised |
| Institutional design    | UPSC, SPSC and Joint Commission                              | solve source, appointment and federal traps   |
| Membership              | composition, experience rule, term and acting chair          | master Article 316                            |
| Independence            | removal, suspension, service conditions and post-office bars | master Articles 317-319                       |
| Functions               | examinations, joint recruitment and consultation             | master Article 320                            |
| Extension and reporting | Articles 321-323                                             | connect advice with accountability            |
| Recruitment boundary    | executive, DoPT, reservation, lateral entry and tribunals    | prevent ownership overreach                   |
| Courts                  | limited review, stable rules and no appointment right        | write accurate case-law answers               |
| Integrity and reform    | public-examination law, digital security and SPSC risks      | add current value without speculation         |
| Workbook                | audited PYQ outcome, 48 rotated MCQs and eight solved Mains  | convert doctrine into marks                   |



## Scope ownership and cross-links

| This package owns                                   | Cross-link owner                               | Boundary                                                              |
|-----------------------------------------------------|------------------------------------------------|-----------------------------------------------------------------------|
| Public Service Commissions under Articles 315-323   | Public Services, Articles 308-314              | Commission design is distinct from service tenure                     |
| examinations and constitutional consultation        | DoPT / Ministries under Article 309 rules      | UPSC is not the whole personnel administration                        |
| PSC recommendation and selection review             | Supreme Court / High Court owners              | courts review legality, not comparative merit as an appellate board   |
| reservation consultation exception                  | Fundamental Rights / special-class commissions | Article 320(4) is not a general anti-reservation rule                 |
| service-dispute recruitment interface               | Administrative Tribunals                       | CAT adjudicates covered disputes; it does not recruit                 |
| public-examination integrity law as applied to UPSC | Internal Security / criminal-law owners        | this package owns institutional application, not every offence detail |
| lateral recruitment consultation boundary           | Governance / Public Services                   | no claim that every lateral post bypasses or must use UPSC            |
| SPSC integrity and federal design                   | Governor / Centre-State Relations              | general gubernatorial office doctrine remains with its owner          |

## Visual 1 - Ownership map



Caption: The Commission guards entry and specified personnel decisions; it does not absorb the executive, cadre authority or judiciary.

## BASIC LEARNING SESSION



Refreshed teaching navigation

Distinct embedded teaching-navigation image. The separate continuous Cārvāka-style flowchart package remains an independent at-a-glance artifact.

## SESSION 1 - WHY MERIT RECRUITMENT IS CONSTITUTIONALISED

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Why Merit Recruitment Is Constitutionalised explains the exact constitutional and institutional rules governing why merit recruitment is constitutionalised.

**Technical definition:** Why Merit Recruitment Is Constitutionalised operates through the exact constitutional and institutional rules governing why merit recruitment is constitutionalised, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Why Merit Recruitment Is Constitutionalised is best understood through the exact constitutional and institutional rules governing why merit recruitment is constitutionalised.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- merit
- recruitment
- constitutionalised

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with merit to explain the mechanism, and use recruitment for the decisive comparison or qualification.

[FACT] A modern State needs permanent officials selected through criteria that do not simply reproduce patronage, family connection, party loyalty or personal favour.

[ANALYSIS] A Public Service Commission is a **constitutional trust institution**: it separates the political executive's legitimate power to govern from the temptation to distribute public posts as political rewards.

[LIMIT] Merit is not identical to one examination score. Constitutional recruitment must reconcile competence, equal opportunity, reservation, suitability, integrity, accessibility and the requirements of each service.

### Visual 2 - Democratic merit chain

EQUAL OPPORTUNITY  
|  
stable rules -> open notice -> fair examination/selection  
|  
reasoned scrutiny -> lawful recommendation -> accountable appointment  
|  
CAPABLE + REPRESENTATIVE + TRUSTED PUBLIC SERVICE

Caption: Merit legitimacy depends on the whole process, not merely the final rank.

### CLOSING RECALL FLOW - WHY MERIT RECRUITMENT IS CONSTITUTIONALISED

START / CONCEPT: WHY MERIT RECRUITMENT IS CONSTITUTIONALISED  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · merit · recruitment  
· constitutionalised  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural  
safeguard and accountability route for why merit recruitment is constitutionalised.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam  
consequence of why merit recruitment is constitutionalised.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise why merit recruitment is constitutionalised beyond its  
exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Why Merit Recruitment Is Constitutionalised is best understood through  
the exact constitutional and institutional rules governing why merit recruitment is  
constitutionalised.

## SESSION 2 - CONSTITUTIONAL RATIONALE: NEUTRALITY WITHOUT EXECUTIVE PARALYSIS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Constitutional Rationale: Neutrality Without Executive Paralysis explains the exact constitutional and institutional rules governing constitutional rationale: neutrality without executive paralysis.

**Technical definition:** Constitutional Rationale: Neutrality Without Executive Paralysis operates through the exact constitutional and institutional rules governing constitutional rationale: neutrality without executive paralysis, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional Rationale: Neutrality Without Executive Paralysis is best understood through the exact constitutional and institutional rules governing constitutional rationale: neutrality without executive paralysis.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- constitutional
- rationale
- neutrality
- without

- executive

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with constitutional to explain the mechanism, and use rationale for the decisive comparison or qualification.

### Visual 3 - Design balance

| Constitutional need         | PSC response                                 | Necessary qualification                         |
|-----------------------------|----------------------------------------------|-------------------------------------------------|
| neutral recruitment         | external constitutional commission           | executive still creates posts and appoints      |
| professional expertise      | examinations and expert selection            | courts retain legality review                   |
| equal opportunity           | standardised and public procedure            | reservation and accommodation remain applicable |
| protection from retaliation | difficult removal and charged expenses       | appointment is still executive                  |
| democratic accountability   | annual reports and non-acceptance memorandum | advice is generally not binding                 |

[ANALYSIS] The Constitution chose **insulated advice**, not an unelected personnel government. The Commission must be strong enough to resist patronage but not so dominant that elected government loses responsibility for administration.

### CLOSING RECALL FLOW - CONSTITUTIONAL RATIONALE: NEUTRALITY WITHOUT EXECUTIVE PARALYSIS

START / CONCEPT: CONSTITUTIONAL RATIONALE: NEUTRALITY WITHOUT EXECUTIVE PARALYSIS

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · constitutional · rationale · neutrality · without · executive

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for constitutional rationale: neutrality without executive paralysis.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of constitutional rationale: neutrality without executive paralysis.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise constitutional rationale: neutrality without executive paralysis beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Constitutional Rationale: Neutrality Without Executive Paralysis is best understood through the exact constitutional and institutional rules governing constitutional rationale: neutrality without executive paralysis.

## SESSION 3 - EVOLUTION FROM PATRONAGE TO CONSTITUTIONAL COMMISSION

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Evolution From Patronage To Constitutional Commission explains the exact constitutional and institutional rules governing evolution from patronage to constitutional commission.

**Technical definition:** Evolution From Patronage To Constitutional Commission operates through the exact constitutional and institutional rules governing evolution from patronage to constitutional commission, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Evolution From Patronage To Constitutional Commission is best understood through the exact constitutional and institutional rules governing evolution from patronage to constitutional commission.

### MUST-WRITE KEYWORDS

- **Articles 315-323**
- **Public Service Commission**
- **merit recruitment**
- **evolution**
- **from**
- **patronage**
- **constitutional**
- **commission**

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with evolution to explain the mechanism, and use from for the decisive comparison or qualification.

### Visual 4 - Evolution timeline

Company patronage  
|  
Charter Act 1853: competitive-recruitment turn  
|  
Macaulay Committee 1854: competitive civil-service framework  
|  
Government of India Act 1919: provision for a Public Service Commission  
|  
Lee Commission 1924: institutional recommendation  
|  
1 October 1926: first Public Service Commission  
|  
Government of India Act 1935:  
Federal + Provincial + Joint PSC design  
|  
26 January 1950:  
Articles 315-323 constitutionalise UPSC/SPSC architecture

[FACT] The local OCR-searchable Laxmikanth chapter and official institutional history trace the Commission lineage through the 1919 and 1935 Acts and the first Commission in 1926.

[ANALYSIS] The constitutional innovation was not merely an examination body. It was the conversion of a colonial recruitment mechanism into a federal, equality-bound and publicly accountable institution.

[LIMIT] Competitive recruitment under colonial rule did not itself create social equality; access and representation remained restricted.

### CLOSING RECALL FLOW - EVOLUTION FROM PATRONAGE TO CONSTITUTIONAL COMMISSION

START / CONCEPT: EVOLUTION FROM PATRONAGE TO CONSTITUTIONAL COMMISSION  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · evolution · from · patronage · constitutional · commission  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for evolution from patronage to constitutional commission.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of evolution from patronage to constitutional commission.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise evolution from patronage to constitutional commission beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Evolution From Patronage To Constitutional Commission is best

understood through the exact constitutional and institutional rules governing evolution from patronage to constitutional commission.

## SESSION 4 - PART XIV MASTER MAP

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Part Xiv Master Map explains the exact constitutional and institutional rules governing part xiv master map.

**Technical definition:** Part Xiv Master Map operates through the exact constitutional and institutional rules governing part xiv master map, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part Xiv Master Map is best understood through the exact constitutional and institutional rules governing part xiv master map.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- part
- xiv
- master
- map

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with part to explain the mechanism, and use xiv for the decisive comparison or qualification.

### Visual 5 - Services and Commission spine

| Provision | Core subject                                | Owner                       |
|-----------|---------------------------------------------|-----------------------------|
| 308       | interpretation                              | Public Services             |
| 309       | recruitment and service-condition law/rules | Public Services / executive |
| 310       | doctrine of pleasure                        | Public Services             |
| 311       | dismissal safeguards                        | Public Services             |
| 312       | All-India Services                          | Public Services             |
| 315       | UPSC, SPSC and Joint Commission             | this package                |
| 316       | appointment and term                        | this package                |
| 317       | removal and suspension                      | this package                |
| 318       | member/staff regulations                    | this package                |
| 319       | post-tenure office restrictions             | this package                |
| 320       | functions and consultation                  | this package                |
| 321       | legislative extension                       | this package                |
| 322       | charged expenses                            | this package                |
| 323       | annual reports and memoranda                | this package                |
| 323A      | administrative tribunals                    | Tribunals owner             |

**Prelims rule:** Articles **315-323** are the Commission chapter; do not mix them with Article 323A tribunals merely because numbering is adjacent.

### CLOSING RECALL FLOW - PART XIV MASTER MAP

START / CONCEPT: PART XIV MASTER MAP

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · part · xiv · master · map

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for part xiv master map.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of part xiv master map.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise part xiv master map beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Part Xiv Master Map is best understood through the exact constitutional and institutional rules governing part xiv master map.

## SESSION 5 - ARTICLE 315: THREE INSTITUTIONAL FORMS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 315: Three Institutional Forms explains the exact constitutional and institutional rules governing article 315: three institutional forms.

**Technical definition:** Article 315: Three Institutional Forms operates through the exact constitutional and institutional rules governing article 315: three institutional forms, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 315: Three Institutional Forms is best understood through the exact constitutional and institutional rules governing article 315: three institutional forms.

### MUST-WRITE KEYWORDS

- Article 315
- Joint State PSC
- federal design
- article
- three
- institutional
- forms

**How to use them:** Frame the answer through Article 315; define Joint State PSC, connect federal design with article to explain the mechanism, and use three for the decisive comparison or qualification.

[FACT] Article 315(1) requires a Public Service Commission for the Union and one for each State, subject to the rest of the Article.

[FACT] Article 315(2) allows two or more States to agree on one Commission. Each relevant State legislature must pass the required resolution; Parliament may then **by law provide for the appointment** of a Joint State Public Service Commission.

[ANALYSIS] A Joint Commission is constitutionally contemplated but activated through a parliamentary statute. Calling it simply “statutory” is incomplete if that suggests an extra-constitutional body; calling it automatically existing

“directly under Article 315” is also incomplete.

### Visual 6 - Constitutional source versus creating instrument

CONSTITUTION, ARTICLE 315(2)  
authorises a Joint State PSC  
|  
State legislatures pass resolutions  
|  
PARLIAMENT ENACTS LAW  
providing for appointment and incidental matters  
|  
JOINT COMMISSION OPERATES  
within Articles 315-323

Caption: The office has a constitutional foundation and a statutory creating instrument.

### CLOSING RECALL FLOW - ARTICLE 315: THREE INSTITUTIONAL FORMS

START / CONCEPT: ARTICLE 315: THREE INSTITUTIONAL FORMS  
|  
v  
EXACT TERMS: Article 315 · Joint State PSC · federal design · article · three · institutional · forms  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 315: three institutional forms.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 315: three institutional forms.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise article 315: three institutional forms beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Article 315: Three Institutional Forms is best understood through the exact constitutional and institutional rules governing article 315: three institutional forms.

## SESSION 6 - ARTICLE 315(4): UPSC ASSISTANCE TO A STATE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 315(4): UPSC Assistance To A State explains the exact constitutional and institutional rules governing article 315(4): upsc assistance to a state.

**Technical definition:** Article 315(4): UPSC Assistance To A State operates through the exact constitutional and institutional rules governing article 315(4): upsc assistance to a state, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 315(4): UPSC Assistance To A State is best understood through the exact constitutional and institutional rules governing article 315(4): upsc assistance to a state.

### MUST-WRITE KEYWORDS

- Article 315
- Joint State PSC
- federal design
- article
- assistance

**How to use them:** Frame the answer through Article 315; define Joint State PSC, connect federal design with article to explain the mechanism, and use assistance for the decisive comparison or qualification.



[FACT] The UPSC may, on a request by a State's Governor and with the President's approval, agree to serve all or any of that State's needs.

[LIMIT] This is not the same as:

1. creating a Joint State PSC under Article 315(2);
2. the Article 320(2) duty to assist two or more States with a joint recruitment scheme for services requiring special qualifications; or
3. permanently abolishing the State Commission.

### Visual 7 - Three easily confused cooperative devices

| Device                               | Trigger                                                | Institution          | Result                                 |
|--------------------------------------|--------------------------------------------------------|----------------------|----------------------------------------|
| Joint State PSC, Art 315(2)          | State legislative resolutions + parliamentary law      | one Joint Commission | serves group of States                 |
| UPSC serves a State, Art 315(4)      | Governor request + President approval + UPSC agreement | UPSC                 | serves all/some State needs            |
| joint recruitment scheme, Art 320(2) | request by two or more States                          | UPSC assistance      | scheme for specially qualified service |

### CLOSING RECALL FLOW - ARTICLE 315(4): UPSC ASSISTANCE TO A STATE

START / CONCEPT: ARTICLE 315(4): UPSC ASSISTANCE TO A STATE  
 |  
 v  
 EXACT TERMS: Article 315 · Joint State PSC · federal design · article · assistance  
 |  
 v  
 MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 315(4): upsc assistance to a state.  
 |  
 v  
 CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 315(4): upsc assistance to a state.  
 |  
 v  
 UPSC TRAP / ANSWER-USE: Do not generalise article 315(4): upsc assistance to a state beyond its exact office, Article, authority or legal effect.  
 |  
 v  
 ANSWER-GRABBING FORMULATION: Article 315(4): UPSC Assistance To A State is best understood through the exact constitutional and institutional rules governing article 315(4): upsc assistance to a state.

## SESSION 7 - UPSC, SPSC AND JOINT COMMISSION COMPARED

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** The Union Public Service Commission serves the Union, a State Public Service Commission serves a State, and a Joint State Public Service Commission serves participating States under a parliamentary law.

**Technical definition:** Article 315 distinguishes the UPSC, each SPSC and a Joint State Public Service Commission while assigning different creation, appointment, assistance and reporting routes.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 315 to 323 create a differentiated federal commission system rather than one national recruitment authority for every public post.

### MUST-WRITE KEYWORDS

- Article 315
- SPSC

- Joint State PSC
- parliamentary law
- federal recruitment

**How to use them:** Use Article 315 to compare UPSC, SPSC and Joint State PSC by constitutional source, appointing authority, service area and reporting route; then add the Article 315(4) and Article 320(2) assistance mechanisms.

### Visual 8 - Institutional comparison matrix

| Dimension                             | UPSC         | SPSC                    | Joint State PSC                                                |
|---------------------------------------|--------------|-------------------------|----------------------------------------------------------------|
| constitutional basis                  | Art 315(1)   | Art 315(1)              | Art 315(2)                                                     |
| operational creation                  | Constitution | Constitution            | parliamentary law after State resolutions                      |
| chair/members appointed by            | President    | Governor                | President                                                      |
| removal authority                     | President    | President               | President                                                      |
| suspension after SC reference         | President    | Governor                | President                                                      |
| service-regulation authority, Art 318 | President    | Governor                | President                                                      |
| age ceiling                           | 65           | 62                      | 62                                                             |
| annual report                         | President    | Governor                | Governor of each served State for that State                   |
| charged fund                          | CFI          | State Consolidated Fund | law/constitutional arrangement must be read with served design |

[LIMIT] For Article 322, the text expressly names Union and State Commissions. A Joint Commission's financial arrangements should be stated from its creating law rather than guessed.

### CLOSING RECALL FLOW - UPSC, SPSC AND JOINT COMMISSION COMPARED

START / CONCEPT: UPSC, SPSC AND JOINT COMMISSION COMPARED

|

v

EXACT TERMS: Article 315 • SPSC • Joint State PSC • parliamentary law • federal recruitment

|

v

MECHANISM / ARGUMENT: The Constitution assigns a Union Commission and State Commissions, permits a Joint Commission after State resolutions and parliamentary law, and allows specified UPSC assistance.

|

v

CONSEQUENCE / CONTRAST: Recruitment expertise can be shared across governments without erasing the constitutional identity and accountability route of each commission.

|

v

UPSC TRAP / ANSWER-USE: Do not call a Joint State PSC purely extra-constitutional, confuse it with temporary UPSC assistance or say that the Union Commission controls every State recruitment.

|

v

ANSWER-GRABBING FORMULATION: Articles 315 to 323 create a differentiated federal commission system rather than one national recruitment authority for every public post.

## SESSION 8 - ARTICLE 316: WHO APPOINTS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 316: Who Appoints explains the exact constitutional and institutional rules governing article 316: who appoints.

**Technical definition:** Article 316: Who Appoints operates through the exact constitutional and institutional rules governing article 316: who appoints, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 316: Who Appoints is best understood through the exact constitutional and institutional rules governing article 316: who appoints.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- article
- who
- appoints

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with article to explain the mechanism, and use who for the decisive comparison or qualification.

[FACT] The President appoints the Chairman and other members of the Union Commission and a Joint Commission. The Governor appoints the Chairman and other members of a State Commission.

[LIMIT] Appointment and removal are intentionally asymmetric for an SPSC: **Governor appoints; President removes.**

### Visual 9 - Appointment/removal trap board

UPSC: President appoints ---- President removes  
SPSC: Governor appoints ---- President removes  
Joint PSC: President appoints ---- President removes

Caption: The State executive initiates SPSC membership but cannot use removal as retaliation.

### CLOSING RECALL FLOW - ARTICLE 316: WHO APPOINTS

START / CONCEPT: ARTICLE 316: WHO APPOINTS  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · article · who · appoints  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 316: who appoints.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 316: who appoints.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise article 316: who appoints beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Article 316: Who Appoints is best understood through the exact constitutional and institutional rules governing article 316: who appoints.

## SESSION 9 - COMPOSITION AND THE ONE-HALF EXPERIENCE RULE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Composition And The One-Half Experience Rule explains the exact constitutional and institutional rules governing composition and the one-half experience rule.

**Technical definition:** Composition And The One-Half Experience Rule operates through the exact constitutional and institutional rules governing composition and the one-half experience rule, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Composition And The One-Half Experience Rule is best understood through the exact constitutional and institutional rules governing composition and the one-half experience rule.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- composition
- one
- half
- experience
- rule

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with composition to explain the mechanism, and use one for the decisive comparison or qualification.

[FACT] The Constitution does not fix the total strength of any Commission.

[FACT] Under the proviso to Article 316(1), **as nearly as may be one-half** of the members of every Commission must, at their appointment dates, have held office for at least ten years under the Government of India or a State.

[FACT] Pre-Constitution service under the Crown in India or the Government of an Indian State counts toward the ten years.

[LIMIT] The Constitution prescribes no universal educational degree, judicial qualification or civil-service rank for every member.

### Visual 10 - Composition test

| Question                         | Correct test                                 | Trap                                        |
|----------------------------------|----------------------------------------------|---------------------------------------------|
| fixed number?                    | no constitutional number                     | do not memorise a changing “usual” strength |
| all members career officials?    | no                                           | only near-half ten-year rule                |
| exactly 50% mathematically?      | “as nearly as may be”                        | do not flatten the phrase                   |
| ten years immediately preceding? | text says held office for at least ten years | do not add continuity language              |
| pre-1950 service counted?        | yes, as specified                            | often omitted in summaries                  |

### CLOSING RECALL FLOW - COMPOSITION AND THE ONE-HALF EXPERIENCE RULE

START / CONCEPT: COMPOSITION AND THE ONE-HALF EXPERIENCE RULE

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · composition · one · half · experience · rule

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for composition and the one-half experience rule.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of composition and the one-half experience rule.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise composition and the one-half experience rule beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Composition And The One-Half Experience Rule is best understood through the exact constitutional and institutional rules governing composition and the one-half

## SESSION 10 - TENURE, AGE AND COMMENCEMENT CALCULATIONS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Tenure, Age And Commencement Calculations explains the exact constitutional and institutional rules governing tenure, age and commencement calculations.

**Technical definition:** Tenure, Age And Commencement Calculations operates through the exact constitutional and institutional rules governing tenure, age and commencement calculations, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tenure, Age And Commencement Calculations is best understood through the exact constitutional and institutional rules governing tenure, age and commencement calculations.

### MUST-WRITE KEYWORDS

- **Articles 315-323**
- **Public Service Commission**
- **merit recruitment**
- **tenure**
- **age**
- **commencement**
- **calculations**

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with tenure to explain the mechanism, and use age for the decisive comparison or qualification.

[FACT] Article 316(2) gives a term of **six years from the date the member enters upon office**, or until the age ceiling, whichever occurs earlier.

[FACT] The ceiling is 65 for the Union Commission and 62 for a State or Joint Commission.

### Visual 11 - Tenure calculation flow

```
DATE OF ENTRY UPON OFFICE
|
+ 6 years
|
compare with age ceiling
|
UPSC: age 65
SPSC/Joint: age 62
|
EARLIER EVENT ENDS TENURE
```

[LIMIT] Appointment date, notification date and date of entering office need not always be identical. Use the constitutional phrase when a commencement calculation matters.

### CLOSING RECALL FLOW - TENURE, AGE AND COMMENCEMENT CALCULATIONS

START / CONCEPT: TENURE, AGE AND COMMENCEMENT CALCULATIONS

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · tenure · age · commencement · calculations

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for tenure, age and commencement calculations.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of tenure, age and commencement calculations.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise tenure, age and commencement calculations beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Tenure, Age And Commencement Calculations is best understood through the exact constitutional and institutional rules governing tenure, age and commencement calculations.

## SESSION 11 - RESIGNATION AND REAPPOINTMENT

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Resignation And Reappointment explains the exact constitutional and institutional rules governing resignation and reappointment.

**Technical definition:** Resignation And Reappointment operates through the exact constitutional and institutional rules governing resignation and reappointment, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Resignation And Reappointment is best understood through the exact constitutional and institutional rules governing resignation and reappointment.

### MUST-WRITE KEYWORDS

- Article 319
- post-tenure eligibility
- government employment
- resignation
- reappointment

**How to use them:** Frame the answer through Article 319; define post-tenure eligibility, connect government employment with resignation to explain the mechanism, and use reappointment for the decisive comparison or qualification.

[FACT] A UPSC or Joint Commission member resigns by writing addressed to the President. An SPSC member resigns by writing addressed to the Governor.

[FACT] Article 316(3) makes a person, on expiry of the term, ineligible for reappointment **to that office**.

[ANALYSIS] “No second term” is a useful shorthand only if qualified: Article 319 still permits specified movement to a different eligible Commission office.

## Visual 12 - Exit routes

| Exit                       | Constitutional route                        | Consequence                        |
|----------------------------|---------------------------------------------|------------------------------------|
| expiry                     | six years/age, whichever earlier            | no reappointment to same office    |
| resignation                | President for UPSC/Joint; Governor for SPSC | post-office restrictions apply     |
| removal                    | Article 317                                 | constitutional process             |
| elevation/other PSC office | only if Article 319 permits                 | not a reappointment to same office |

## CLOSING RECALL FLOW - RESIGNATION AND REAPPOINTMENT

START / CONCEPT: RESIGNATION AND REAPPOINTMENT

↓  
↓

EXACT TERMS: Article 319 · post-tenure eligibility · government employment · resignation · reappointment

↓  
↓

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for resignation and reappointment.

↓  
↓

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of resignation and reappointment.

↓  
↓

UPSC TRAP / ANSWER-USE: Do not generalise resignation and reappointment beyond its exact office, Article, authority or legal effect.

↓  
↓

ANSWER-GRABBING FORMULATION: Resignation And Reappointment is best understood through the exact constitutional and institutional rules governing resignation and reappointment.

## SESSION 12 - ACTING CHAIRMAN UNDER ARTICLE 316(1A)

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Acting Chairman Under Article 316(1A) explains the exact constitutional and institutional rules governing acting chairman under article 316(1a).

**Technical definition:** Acting Chairman Under Article 316(1A) operates through the exact constitutional and institutional rules governing acting chairman under article 316(1a), distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Acting Chairman Under Article 316(1A) is best understood through the exact constitutional and institutional rules governing acting chairman under article 316(1a).

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- acting
- chairman
- article

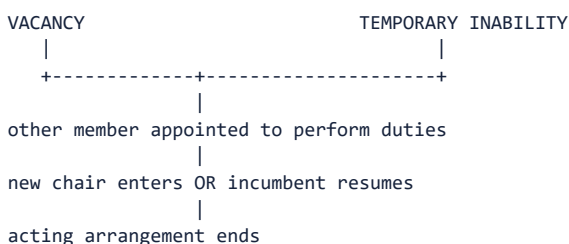
**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with acting to explain the mechanism, and use chairman for the decisive comparison or qualification.

[FACT] If the Chair's office is vacant, or the Chair cannot perform duties because of absence or another reason, another member may be appointed to perform the duties.

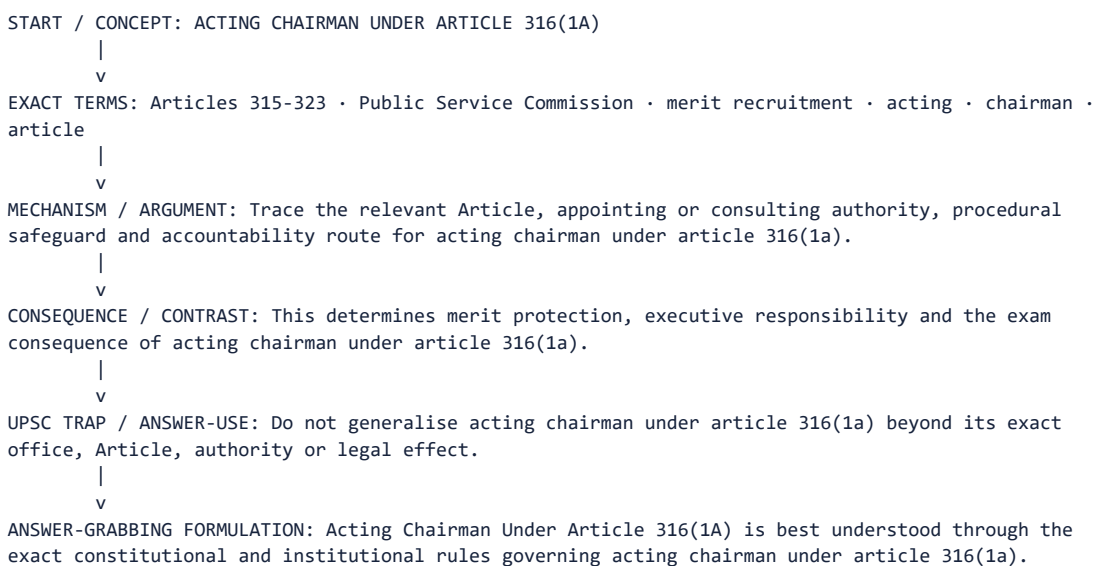
[FACT] The appointing authority is the President for the Union/Joint Commission and the Governor for an SPSC.

[FACT] The arrangement lasts until the new Chair enters upon duties or the existing Chair resumes.

### Visual 13 - Acting-chair trigger



### CLOSING RECALL FLOW - ACTING CHAIRMAN UNDER ARTICLE 316(1A)



## SESSION 13 - ARTICLE 317: REMOVAL IS NOT ONE UNDIFFERENTIATED PROCESS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 317: Removal Is Not One Undifferentiated Process explains the exact constitutional and institutional rules governing article 317: removal is not one undifferentiated process.

**Technical definition:** Article 317: Removal Is Not One Undifferentiated Process operates through the exact constitutional and institutional rules governing article 317: removal is not one undifferentiated process, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 317: Removal Is Not One Undifferentiated Process is best understood through the exact constitutional and institutional rules governing article 317: removal is not one undifferentiated process.

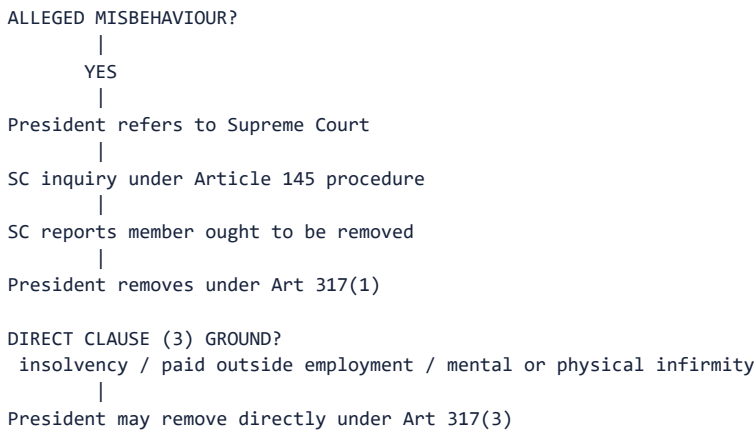
### MUST-WRITE KEYWORDS

- Article 317
- Supreme Court inquiry
- removal
- article
- not
- one
- undifferentiated



**How to use them:** Frame the answer through Article 317; define Supreme Court inquiry, connect removal with article to explain the mechanism, and use not for the decisive comparison or qualification.

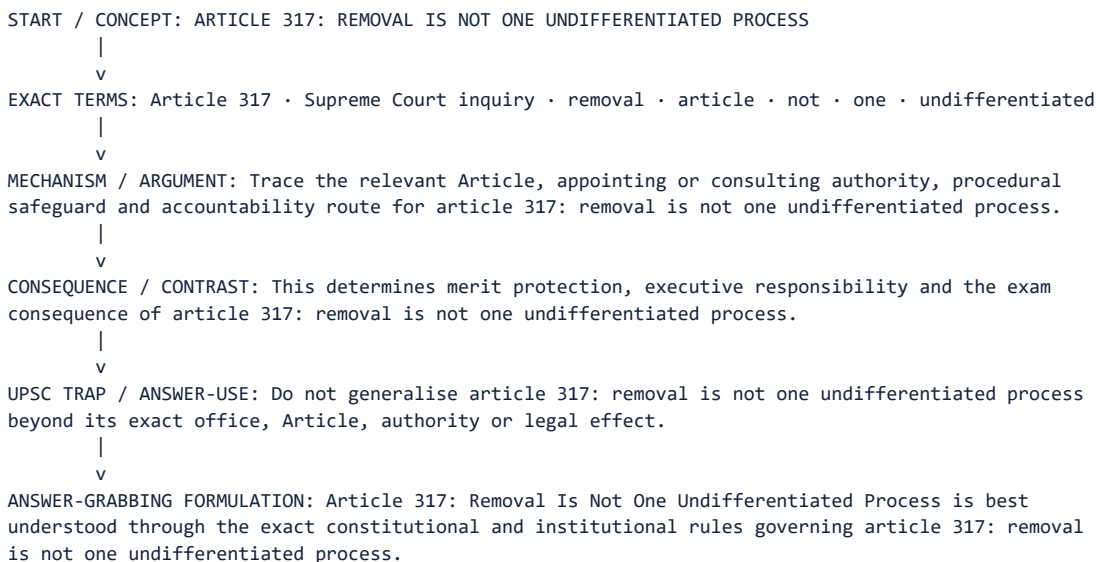
#### Visual 14 - Removal decision tree



[FACT] Only the President removes a Chair or member of any Public Service Commission.

[LIMIT] Do not import the parliamentary-address process used for judges into Article 317.

#### CLOSING RECALL FLOW - ARTICLE 317: REMOVAL IS NOT ONE UNDIFFERENTIATED PROCESS



## SESSION 14 - MISBEHAVIOUR AND SUPREME COURT INQUIRY

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Misbehaviour And Supreme Court Inquiry explains the exact constitutional and institutional rules governing misbehaviour and supreme court inquiry.

**Technical definition:** Misbehaviour And Supreme Court Inquiry operates through the exact constitutional and institutional rules governing misbehaviour and supreme court inquiry, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Misbehaviour And Supreme Court Inquiry is best understood through the exact constitutional and institutional rules governing misbehaviour and supreme court inquiry.

### MUST-WRITE KEYWORDS

- Article 317
- Supreme Court inquiry

- removal
- misbehaviour
- supreme
- court
- inquiry

**How to use them:** Frame the answer through Article 317; define Supreme Court inquiry, connect removal with misbehaviour to explain the mechanism, and use supreme for the decisive comparison or qualification.

[FACT] Under Article 317(1), removal for misbehaviour follows a Presidential reference and Supreme Court inquiry. Removal follows where the Court reports that the member ought to be removed on that ground.

[FACT] Article 317(4) deems a member guilty of misbehaviour if the member is concerned or interested in a government contract/agreement or participates in its profit or benefit, except as a member in common with other members of an incorporated company.

### Visual 15 - Misbehaviour architecture

| Element           | Constitutional control                            | Why it matters                    |
|-------------------|---------------------------------------------------|-----------------------------------|
| allegation        | not enough by itself                              | protects tenure                   |
| reference         | President                                         | central constitutional trigger    |
| inquiry           | Supreme Court                                     | independent fact/legal assessment |
| contract interest | deemed misbehaviour, subject to company exception | controls conflict of interest     |
| final order       | President after Court report                      | formal removal authority          |

### CLOSING RECALL FLOW - MISBEHAVIOUR AND SUPREME COURT INQUIRY

START / CONCEPT: MISBEHAVIOUR AND SUPREME COURT INQUIRY

|  
v

EXACT TERMS: Article 317 · Supreme Court inquiry · removal · misbehaviour · supreme · court · inquiry

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for misbehaviour and supreme court inquiry.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of misbehaviour and supreme court inquiry.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise misbehaviour and supreme court inquiry beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Misbehaviour And Supreme Court Inquiry is best understood through the exact constitutional and institutional rules governing misbehaviour and supreme court inquiry.

## SESSION 15 - CLAUSE (3) DIRECT PRESIDENTIAL REMOVAL GROUNDS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Clause (3) Direct Presidential Removal Grounds explains the exact constitutional and institutional rules governing clause (3) direct presidential removal grounds.

**Technical definition:** Clause (3) Direct Presidential Removal Grounds operates through the exact constitutional and institutional rules governing clause (3) direct presidential removal grounds, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Clause (3) Direct Presidential Removal Grounds is best understood through the exact constitutional and institutional rules governing clause (3) direct presidential removal grounds.

### MUST-WRITE KEYWORDS

- **Article 317**
- **Supreme Court inquiry**
- **removal**
- **clause**
- **direct**
- **presidential**
- **grounds**

**How to use them:** Frame the answer through Article 317; define Supreme Court inquiry, connect removal with clause to explain the mechanism, and use direct for the decisive comparison or qualification.

[FACT] Article 317(3) separately authorises Presidential removal where the member:

1. is adjudged insolvent;
2. engages during the term in paid employment outside official duties; or
3. is, in the President's opinion, unfit by reason of infirmity of mind or body.

### Visual 16 - Grounds must not be flattened

| Ground                       | SC inquiry under 317(1)?            | Decision route                              |
|------------------------------|-------------------------------------|---------------------------------------------|
| misbehaviour                 | yes                                 | reference -> inquiry -> report -> President |
| insolvency                   | no separate 317(1) inquiry required | President under 317(3)                      |
| paid outside employment      | no separate 317(1) inquiry required | President under 317(3)                      |
| mental/physical infirmity    | no separate 317(1) inquiry required | President under 317(3)                      |
| government-contract interest | deemed misbehaviour                 | 317(1) route                                |

### CLOSING RECALL FLOW - CLAUSE (3) DIRECT PRESIDENTIAL REMOVAL GROUNDS

START / CONCEPT: CLAUSE (3) DIRECT PRESIDENTIAL REMOVAL GROUNDS

|

v

EXACT TERMS: Article 317 · Supreme Court inquiry · removal · clause · direct · presidential · grounds

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for clause (3) direct presidential removal grounds.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of clause (3) direct presidential removal grounds.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise clause (3) direct presidential removal grounds beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Clause (3) Direct Presidential Removal Grounds is best understood through the exact constitutional and institutional rules governing clause (3) direct presidential removal grounds.

## SESSION 16 - SUSPENSION DURING INQUIRY

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Suspension During Inquiry explains the exact constitutional and institutional rules governing suspension during inquiry.

**Technical definition:** Suspension During Inquiry operates through the exact constitutional and institutional rules governing suspension during inquiry, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Suspension During Inquiry is best understood through the exact constitutional and institutional rules governing suspension during inquiry.

### MUST-WRITE KEYWORDS

- Article 317
- Supreme Court inquiry
- removal
- suspension
- during
- inquiry

**How to use them:** Frame the answer through Article 317; define Supreme Court inquiry, connect removal with suspension to explain the mechanism, and use during for the decisive comparison or qualification.

[FACT] Once a reference has been made to the Supreme Court:

- the President may suspend a UPSC or **Joint Commission** Chair/member; and
- the Governor may suspend an **SPSC** Chair/member.

[FACT] Suspension lasts until the President acts after receiving the Supreme Court report.

### Visual 17 - Suspension authority matrix

| Commission                                         | Who suspends after reference? | Who finally removes/acts? |
|----------------------------------------------------|-------------------------------|---------------------------|
| UPSC                                               | President                     | President                 |
| SPSC, including a State body such as Jharkhand PSC | Governor                      | President                 |
| Joint State PSC                                    | President                     | President                 |

**Terminology caution:** “JPSC” can mean Jharkhand Public Service Commission in current usage. A Jharkhand PSC is an SPSC, not the constitutional “Joint Commission”.

### CLOSING RECALL FLOW - SUSPENSION DURING INQUIRY

START / CONCEPT: SUSPENSION DURING INQUIRY

|

v

EXACT TERMS: Article 317 · Supreme Court inquiry · removal · suspension · during · inquiry

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for suspension during inquiry.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of suspension during inquiry.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise suspension during inquiry beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Suspension During Inquiry is best understood through the exact constitutional and institutional rules governing suspension during inquiry.

## SESSION 17 - ARTICLE 318: REGULATIONS FOR MEMBERS AND STAFF

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 318: Regulations For Members And Staff explains the exact constitutional and institutional rules governing article 318: regulations for members and staff.

**Technical definition:** Article 318: Regulations For Members And Staff operates through the exact constitutional and institutional rules governing article 318: regulations for members and staff, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 318: Regulations For Members And Staff is best understood through the exact constitutional and institutional rules governing article 318: regulations for members and staff.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- article
- regulations
- for
- members
- staff

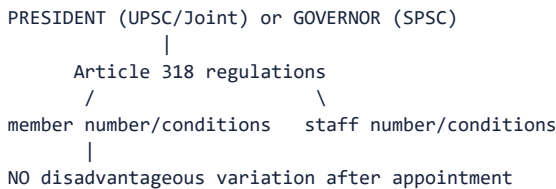
**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with article to explain the mechanism, and use regulations for the decisive comparison or qualification.

[FACT] The President for the Union/Joint Commission and the Governor for an SPSC may regulate:

1. the number of Commission members and their conditions of service; and
2. the number and conditions of service of Commission staff.

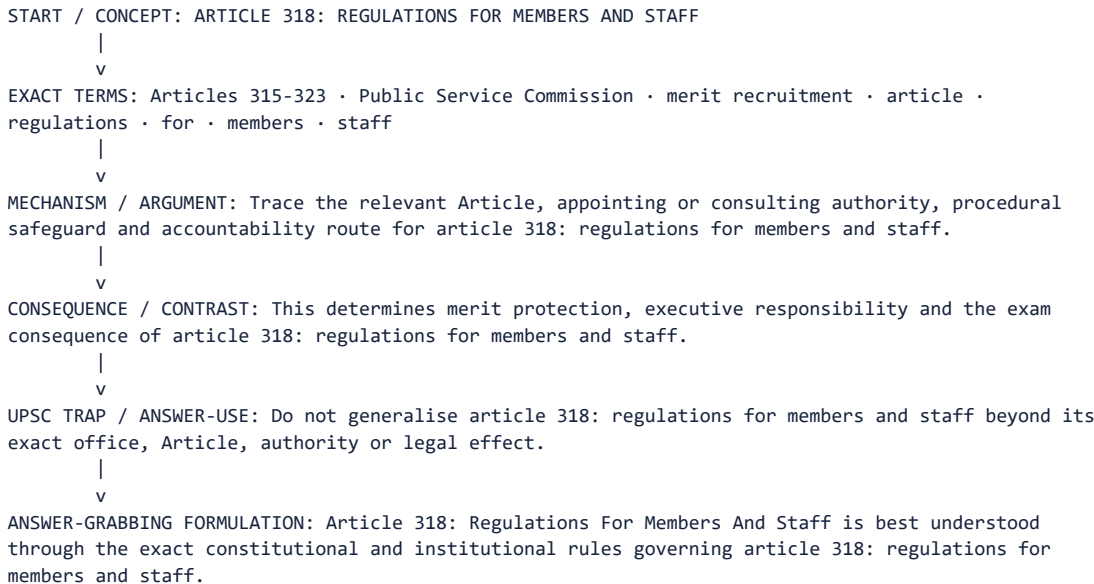
[FACT] A member's conditions of service cannot be varied to the member's disadvantage after appointment.

## Visual 18 - Regulation power and safeguard



[LIMIT] The non-disadvantage proviso protects members; staff conditions remain governed by the applicable legal framework.

## CLOSING RECALL FLOW - ARTICLE 318: REGULATIONS FOR MEMBERS AND STAFF



## SESSION 18 - ARTICLE 319: EXACT POST-TENURE RESTRICTIONS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 319: Exact Post-Tenure Restrictions explains the exact constitutional and institutional rules governing article 319: exact post-tenure restrictions.

**Technical definition:** Article 319: Exact Post-Tenure Restrictions operates through the exact constitutional and institutional rules governing article 319: exact post-tenure restrictions, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 319: Exact Post-Tenure Restrictions is best understood through the exact constitutional and institutional rules governing article 319: exact post-tenure restrictions.

### MUST-WRITE KEYWORDS

- Article 319
- post-tenure eligibility
- government employment
- article
- post
- tenure
- restrictions

**How to use them:** Frame the answer through Article 319; define post-tenure eligibility, connect government employment with article to explain the mechanism, and use post for the decisive comparison or qualification.

### Visual 19 - Four-office eligibility matrix

| Former office | May become                                       | Bar                                           |
|---------------|--------------------------------------------------|-----------------------------------------------|
| UPSC Chair    | no further government employment                 | Union or State government employment          |
| SPSC Chair    | UPSC Chair or UPSC member; Chair of another SPSC | every other Union/State government employment |
| UPSC member   | UPSC Chair or Chair of an SPSC                   | every other Union/State government employment |
| SPSC member   | UPSC Chair/member; Chair of same or another SPSC | every other Union/State government employment |

[FACT] Article 319 differentiates each office; there is no single sentence accurately describing all four.

[LIMIT] Eligibility does not create a right to elevation.

[LIMIT] The text bars “employment” under government. A constitutional office must be analysed by its legal character; do not convert an unverified textbook case reference into a blanket proposition.

### CLOSING RECALL FLOW - ARTICLE 319: EXACT POST-TENURE RESTRICTIONS

START / CONCEPT: ARTICLE 319: EXACT POST-TENURE RESTRICTIONS

|

v

EXACT TERMS: Article 319 · post-tenure eligibility · government employment · article · post · tenure · restrictions

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 319: exact post-tenure restrictions.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 319: exact post-tenure restrictions.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 319: exact post-tenure restrictions beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Article 319: Exact Post-Tenure Restrictions is best understood through the exact constitutional and institutional rules governing article 319: exact post-tenure restrictions.

## SESSION 19 - ARTICLE 316(3) AND ARTICLE 319 READ TOGETHER

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 316(3) And Article 319 Read Together explains the exact constitutional and institutional rules governing article 316(3) and article 319 read together.

**Technical definition:** Article 316(3) And Article 319 Read Together operates through the exact constitutional and institutional rules governing article 316(3) and article 319 read together, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 316(3) And Article 319 Read Together is best understood through the exact constitutional and institutional rules governing article 316(3) and article 319 read together.

### MUST-WRITE KEYWORDS

- Article 319
- post-tenure eligibility
- government employment
- article

- read
- together

**How to use them:** Frame the answer through Article 319; define post-tenure eligibility, connect government employment with article to explain the mechanism, and use read for the decisive comparison or qualification.

### Visual 20 - Same office versus permitted progression

```

TERM EXPIRES
|
Art 316(3): no reappointment to THAT office
|
Art 319 asks whether a DIFFERENT PSC office is permitted
|
eligible progression only within the exact four-clause matrix

```

[ANALYSIS] The design reduces incentives to please the appointing executive for an ordinary government job while retaining limited institutional progression.

[LIMIT] Post-office bars do not cure appointment-stage influence; independence is a lifecycle problem.

### CLOSING RECALL FLOW - ARTICLE 316(3) AND ARTICLE 319 READ TOGETHER

```

START / CONCEPT: ARTICLE 316(3) AND ARTICLE 319 READ TOGETHER
|
v
EXACT TERMS: Article 319 · post-tenure eligibility · government employment · article · read ·
together
|
v
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural
safeguard and accountability route for article 316(3) and article 319 read together.
|
v
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam
consequence of article 316(3) and article 319 read together.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise article 316(3) and article 319 read together beyond its
exact office, Article, authority or legal effect.
|
v
ANSWER-GRABBING FORMULATION: Article 316(3) And Article 319 Read Together is best understood
through the exact constitutional and institutional rules governing article 316(3) and article 319
read together.

```

## SESSION 20 - INDEPENDENCE SAFEGUARDS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Independence Safeguards explains the exact constitutional and institutional rules governing independence safeguards.

**Technical definition:** Independence Safeguards operates through the exact constitutional and institutional rules governing independence safeguards, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Independence Safeguards is best understood through the exact constitutional and institutional rules governing independence safeguards.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- independence
- safeguards



**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with independence to explain the mechanism, and use safeguards for the decisive comparison or qualification.

### Visual 21 - Safeguard shield

| Safeguard                     | Article | Institutional effect                          |
|-------------------------------|---------|-----------------------------------------------|
| constitutional creation       | 315     | ordinary executive cannot abolish core office |
| fixed tenure/age              | 316     | predictable endpoint                          |
| removal only constitutionally | 317     | protection from retaliation                   |
| adverse service change barred | 318     | financial/service security                    |
| post-office restrictions      | 319     | reduces favour-seeking                        |
| charged expenditure           | 322     | non-votable financial protection              |
| public reporting              | 323     | makes rejected advice visible                 |

[ANALYSIS] These safeguards are mutually reinforcing. Removal security without staff, finance, transparent appointments and operational integrity can still produce weak independence.

### CLOSING RECALL FLOW - INDEPENDENCE SAFEGUARDS

START / CONCEPT: INDEPENDENCE SAFEGUARDS  
 |  
 v  
 EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · independence · safeguards  
 |  
 v  
 MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for independence safeguards.  
 |  
 v  
 CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of independence safeguards.  
 |  
 v  
 UPSC TRAP / ANSWER-USE: Do not generalise independence safeguards beyond its exact office, Article, authority or legal effect.  
 |  
 v  
 ANSWER-GRABBING FORMULATION: Independence Safeguards is best understood through the exact constitutional and institutional rules governing independence safeguards.

## SESSION 21 - INDEPENDENCE LIMITS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Independence Limits explains the exact constitutional and institutional rules governing independence limits.

**Technical definition:** Independence Limits operates through the exact constitutional and institutional rules governing independence limits, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Independence Limits is best understood through the exact constitutional and institutional rules governing independence limits.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission

- merit recruitment
- independence
- limits

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with independence to explain the mechanism, and use limits for the decisive comparison or qualification.

### Visual 22 - Safeguard-limit matrix

| Protection                   | Continuing vulnerability                               |
|------------------------------|--------------------------------------------------------|
| hard removal                 | executive appoints members                             |
| charged expenditure          | budget size and staff capacity still matter            |
| service-condition protection | secretariat and technology dependence can persist      |
| post-office bar              | permitted PSC progression may still create incentives  |
| constitutional consultation  | advice is generally non-binding                        |
| annual reporting             | delay or thin reasons can weaken accountability        |
| expert selection             | vacancies, delay or integrity failures can erode trust |

[ANALYSIS] The strongest GS-II conclusion is neither “completely independent” nor “mere department”. It is constitutionally insulated but operationally dependent on appointment quality, capacity, reason-giving and compliance conventions.

### CLOSING RECALL FLOW - INDEPENDENCE LIMITS

START / CONCEPT: INDEPENDENCE LIMITS

|  
v

EXACT TERMS: Articles 315-323 • Public Service Commission • merit recruitment • independence • limits

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for independence limits.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of independence limits.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise independence limits beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Independence Limits is best understood through the exact constitutional and institutional rules governing independence limits.

## SESSION 22 - ARTICLE 320(1): EXAMINATION DUTY

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 320(1): Examination Duty explains the exact constitutional and institutional rules governing article 320(1): examination duty.

**Technical definition:** Article 320(1): Examination Duty operates through the exact constitutional and institutional rules governing article 320(1): examination duty, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 320(1): Examination Duty is best understood through the exact constitutional and institutional rules governing article 320(1): examination duty.

## MUST-WRITE KEYWORDS

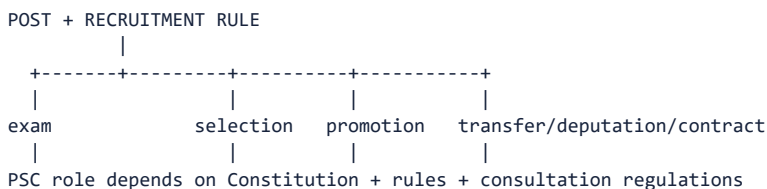
- Article 320
- consultation
- recruitment advice
- article
- examination
- duty

**How to use them:** Frame the answer through Article 320; define consultation, connect recruitment advice with article to explain the mechanism, and use examination for the decisive comparison or qualification.

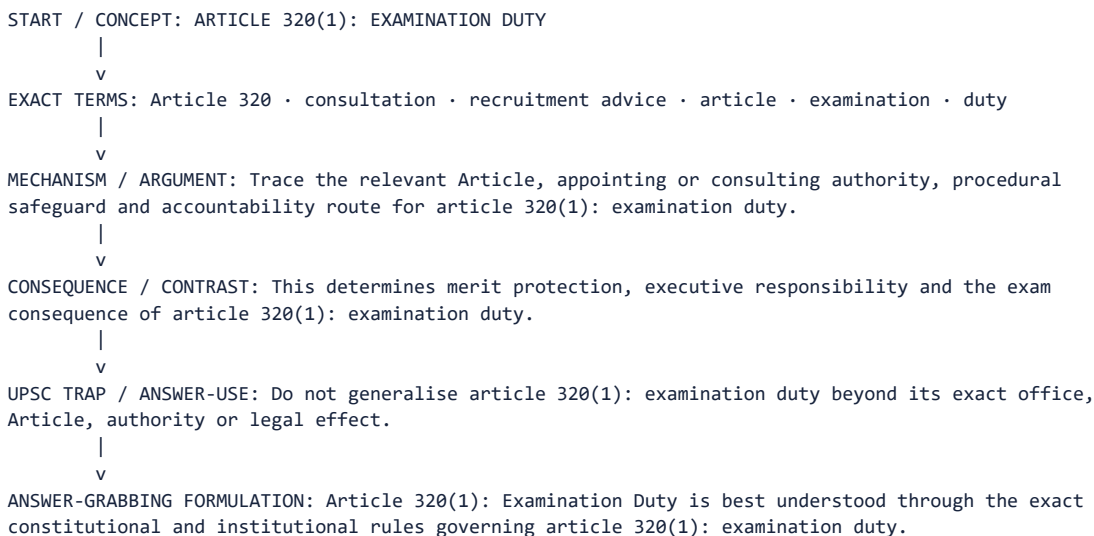
[FACT] It is the duty of the Union and State Commissions to conduct examinations for appointments to Union and State services respectively.

[LIMIT] Not every government appointment must be made through one common competitive examination. Recruitment rules may prescribe examination, direct recruitment by selection, promotion, transfer, deputation, contract or another lawful mode.

### Visual 23 - Examination is a function, not a monopoly over every post



## CLOSING RECALL FLOW - ARTICLE 320(1): EXAMINATION DUTY



## SESSION 23 - ARTICLE 320(2): JOINT RECRUITMENT ASSISTANCE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 320(2): Joint Recruitment Assistance explains the exact constitutional and institutional rules governing article 320(2): joint recruitment assistance.

**Technical definition:** Article 320(2): Joint Recruitment Assistance operates through the exact constitutional and institutional rules governing article 320(2): joint recruitment assistance, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 320(2): Joint Recruitment Assistance is best understood through the exact constitutional and institutional rules governing article 320(2): joint recruitment assistance.

## MUST-WRITE KEYWORDS

- Article 320
- consultation
- recruitment advice
- article
- joint
- recruitment
- assistance

**How to use them:** Frame the answer through Article 320; define consultation, connect recruitment advice with article to explain the mechanism, and use joint for the decisive comparison or qualification.

[FACT] If requested by two or more States, the UPSC must assist them in framing and operating joint recruitment schemes for services requiring candidates with special qualifications.

[LIMIT] This clause does not create a Joint State PSC.

## Visual 24 - Article 315(2) versus Article 320(2)

| Test                             | Art 315(2)                                  | Art 320(2)                     |
|----------------------------------|---------------------------------------------|--------------------------------|
| object                           | common Commission                           | common recruitment scheme      |
| trigger                          | legislative resolutions + parliamentary law | requests by two or more States |
| institution created?             | yes, Joint Commission                       | no new Commission              |
| special qualifications required? | not textual condition                       | expressly relevant             |

## CLOSING RECALL FLOW - ARTICLE 320(2): JOINT RECRUITMENT ASSISTANCE

START / CONCEPT: ARTICLE 320(2): JOINT RECRUITMENT ASSISTANCE

|

v

EXACT TERMS: Article 320 · consultation · recruitment advice · article · joint · recruitment · assistance

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 320(2): joint recruitment assistance.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 320(2): joint recruitment assistance.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 320(2): joint recruitment assistance beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Article 320(2): Joint Recruitment Assistance is best understood through the exact constitutional and institutional rules governing article 320(2): joint recruitment assistance.

## SESSION 24 - ARTICLE 320(3): CONSULTATION CATALOGUE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 320(3): Consultation Catalogue explains the exact constitutional and institutional rules governing article 320(3): consultation catalogue.

**Technical definition:** Article 320(3): Consultation Catalogue operates through the exact constitutional and institutional rules governing article 320(3): consultation catalogue, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

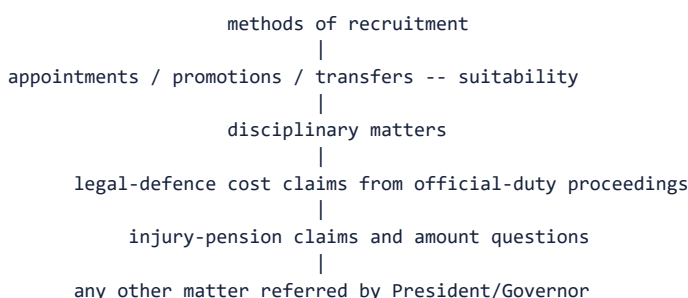
Article 320(3): Consultation Catalogue is best understood through the exact constitutional and institutional rules governing article 320(3): consultation catalogue.

### MUST-WRITE KEYWORDS

- Article 320
- consultation
- recruitment advice
- article
- catalogue

**How to use them:** Frame the answer through Article 320; define consultation, connect recruitment advice with article to explain the mechanism, and use catalogue for the decisive comparison or qualification.

### Visual 25 - Consultation wheel



[FACT] The Commission must advise on referred matters and the listed classes, subject to the constitutional exceptions and valid regulations.

### CLOSING RECALL FLOW - ARTICLE 320(3): CONSULTATION CATALOGUE

START / CONCEPT: ARTICLE 320(3): CONSULTATION CATALOGUE  
|  
v  
EXACT TERMS: Article 320 · consultation · recruitment advice · article · catalogue  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 320(3): consultation catalogue.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 320(3): consultation catalogue.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise article 320(3): consultation catalogue beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Article 320(3): Consultation Catalogue is best understood through the exact constitutional and institutional rules governing article 320(3): consultation catalogue.

## SESSION 25 - RECRUITMENT METHODS, PRINCIPLES AND SUITABILITY

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Recruitment Methods, Principles And Suitability explains the exact constitutional and institutional rules governing recruitment methods, principles and suitability.

**Technical definition:** Recruitment Methods, Principles And Suitability operates through the exact constitutional and institutional rules governing recruitment methods, principles and suitability, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Recruitment Methods, Principles And Suitability is best understood through the exact constitutional and institutional rules governing recruitment methods, principles and suitability.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- recruitment
- methods
- principles
- suitability

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with recruitment to explain the mechanism, and use methods for the decisive comparison or qualification.

### Visual 26 - Three different consultation questions

| Question    | Example                                                      | Commission role               |
|-------------|--------------------------------------------------------------|-------------------------------|
| method      | exam, interview, promotion quota, deputation                 | advise on method              |
| principle   | seniority-cum-merit, qualifying standard, selection criteria | advise on governing principle |
| suitability | whether named candidates satisfy lawful criteria             | assess within process         |

[ANALYSIS] A strong answer distinguishes designing the route, setting the rule and evaluating a candidate. Conflating them hides where arbitrariness occurred.

### CLOSING RECALL FLOW - RECRUITMENT METHODS, PRINCIPLES AND SUITABILITY

START / CONCEPT: RECRUITMENT METHODS, PRINCIPLES AND SUITABILITY

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · recruitment · methods · principles · suitability

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for recruitment methods, principles and suitability.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of recruitment methods, principles and suitability.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise recruitment methods, principles and suitability beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Recruitment Methods, Principles And Suitability is best understood through the exact constitutional and institutional rules governing recruitment methods, principles and suitability.

## SESSION 26 - DISCIPLINARY AND CLAIMS CONSULTATION

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Disciplinary And Claims Consultation explains the exact constitutional and institutional rules governing disciplinary and claims consultation.

**Technical definition:** Disciplinary And Claims Consultation operates through the exact constitutional and institutional rules governing disciplinary and claims consultation, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Disciplinary And Claims Consultation is best understood through the exact constitutional and institutional rules governing disciplinary and claims consultation.

### MUST-WRITE KEYWORDS

- **Article 320**
- **consultation**
- **recruitment advice**
- **disciplinary**
- **claims**

**How to use them:** Frame the answer through Article 320; define consultation, connect recruitment advice with disciplinary to explain the mechanism, and use claims for the decisive comparison or qualification.

[FACT] Article 320(3)(c) includes disciplinary matters affecting persons serving in a civil capacity, including memorials or petitions.

[FACT] Clauses (d) and (e) cover specified official-duty legal-cost claims and injury-pension claims.

### Visual 27 - Less-tested Article 320 claims

| Clause    | Claim                                                              | Fund/decision concern      |
|-----------|--------------------------------------------------------------------|----------------------------|
| 320(3)(d) | reimbursement of legal defence costs for official-duty proceedings | CFI/State fund             |
| 320(3)(e) | pension for injury sustained in civil service and amount           | compensatory service claim |

**Prelims trap:** Article 320 is wider than examinations and ordinary recruitment.

### CLOSING RECALL FLOW - DISCIPLINARY AND CLAIMS CONSULTATION

START / CONCEPT: DISCIPLINARY AND CLAIMS CONSULTATION

|

v

EXACT TERMS: Article 320 · consultation · recruitment advice · disciplinary · claims

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for disciplinary and claims consultation.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of disciplinary and claims consultation.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise disciplinary and claims consultation beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Disciplinary And Claims Consultation is best understood through the exact constitutional and institutional rules governing disciplinary and claims consultation.

## SESSION 27 - CONSULTATION EXCEPTIONS AND ARTICLE 320(4)

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Consultation Exceptions And Article 320(4) explains the exact constitutional and institutional rules governing consultation exceptions and article 320(4).

**Technical definition:** Consultation Exceptions And Article 320(4) operates through the exact constitutional and institutional rules governing consultation exceptions and article 320(4), distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Consultation Exceptions And Article 320(4) is best understood through the exact constitutional and institutional rules governing consultation exceptions and article 320(4).

### MUST-WRITE KEYWORDS

- **Article 320**
- **consultation**
- **recruitment advice**
- **exceptions**
- **article**

**How to use them:** Frame the answer through Article 320; define consultation, connect recruitment advice with exceptions to explain the mechanism, and use article for the decisive comparison or qualification.

[FACT] The proviso to Article 320(3) allows the President or Governor to make regulations specifying matters/classes/circumstances where consultation is unnecessary.

[FACT] Article 320(4) separately says clause (3) does not require consultation about:

1. the manner in which a provision under Article 16(4) may be made; or
2. the manner in which effect may be given to Article 335.

### Visual 28 - Reservation nuance

ARTICLE 16(4) RESERVATION DESIGN  
+  
ARTICLE 335 EFFECT FOR SC/ST CLAIMS  
|  
Art 320(4): no required PSC consultation on the MANNER  
|  
NOT:  
reservation is outside the Constitution  
NOT:  
PSC may disregard an operative roster/rule  
NOT:  
all SC/ST service questions are excluded from every process

[LIMIT] The familiar statement “UPSC is not consulted on reservations” must be written with this exact textual scope.

### CLOSING RECALL FLOW - CONSULTATION EXCEPTIONS AND ARTICLE 320(4)

START / CONCEPT: CONSULTATION EXCEPTIONS AND ARTICLE 320(4)  
|  
v  
EXACT TERMS: Article 320 · consultation · recruitment advice · exceptions · article  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for consultation exceptions and article 320(4).  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of consultation exceptions and article 320(4).  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise consultation exceptions and article 320(4) beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Consultation Exceptions And Article 320(4) is best understood through the exact constitutional and institutional rules governing consultation exceptions and article 320(4).



## SESSION 28 - REGULATIONS MUST FACE THE LEGISLATURE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Regulations Must Face The Legislature explains the exact constitutional and institutional rules governing regulations must face the legislature.

**Technical definition:** Regulations Must Face The Legislature operates through the exact constitutional and institutional rules governing regulations must face the legislature, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Regulations Must Face The Legislature is best understood through the exact constitutional and institutional rules governing regulations must face the legislature.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- regulations
- must
- face
- legislature

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with regulations to explain the mechanism, and use must for the decisive comparison or qualification.

[FACT] Article 320(5) requires consultation-exemption regulations to be laid for at least fourteen days before Parliament or the State legislature, as applicable, and subjects them to legislative modification, repeal or amendment during the relevant session.

### Visual 29 - Delegated-accountability chain

President/Governor makes exemption regulation  
|  
laid for not less than 14 days  
|  
Parliament / State Legislature scrutinises  
|  
may modify, repeal or amend

[ANALYSIS] Exemption power is constitutionally permitted but not designed as invisible executive waiver.

### CLOSING RECALL FLOW - REGULATIONS MUST FACE THE LEGISLATURE

START / CONCEPT: REGULATIONS MUST FACE THE LEGISLATURE

|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · regulations · must  
· face · legislature

|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for regulations must face the legislature.

|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of regulations must face the legislature.

|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise regulations must face the legislature beyond its exact office, Article, authority or legal effect.

|  
v  
ANSWER-GRABBING FORMULATION: Regulations Must Face The Legislature is best understood through the exact constitutional and institutional rules governing regulations must face the legislature.

## SESSION 29 - ADVICE IS GENERALLY ADVISORY, NOT BINDING

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Advice Is Generally Advisory, Not Binding explains the exact constitutional and institutional rules governing advice is generally advisory, not binding.

**Technical definition:** Advice Is Generally Advisory, Not Binding operates through the exact constitutional and institutional rules governing advice is generally advisory, not binding, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Advice Is Generally Advisory, Not Binding is best understood through the exact constitutional and institutional rules governing advice is generally advisory, not binding.

### MUST-WRITE KEYWORDS

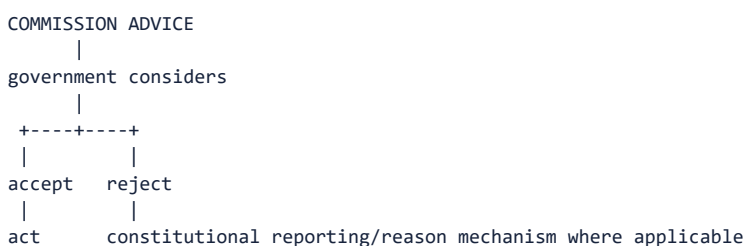
- Articles 315-323
- Public Service Commission
- merit recruitment
- advice
- generally
- advisory
- not
- binding

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with advice to explain the mechanism, and use generally for the decisive comparison or qualification.

[FACT] In *State of U.P. v. Manbodhan Lal Srivastava* (1957), the Supreme Court held Article 320(3) consultation directory rather than mandatory; non-consultation does not by itself invalidate the disciplinary action.

[LIMIT] "Directory" does not mean the executive may casually ignore the Commission. The judgment treated consultation as an important constitutional safeguard even while refusing automatic invalidation.

### Visual 30 - Advisory does not mean irrelevant



[ANALYSIS] The Commission influences through expertise, convention, transparency and political cost rather than a legal veto.

### CLOSING RECALL FLOW - ADVICE IS GENERALLY ADVISORY, NOT BINDING

START / CONCEPT: ADVICE IS GENERALLY ADVISORY, NOT BINDING

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · advice · generally  
· advisory · not · binding

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural  
safeguard and accountability route for advice is generally advisory, not binding.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam  
consequence of advice is generally advisory, not binding.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise advice is generally advisory, not binding beyond its  
exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Advice Is Generally Advisory, Not Binding is best understood through  
the exact constitutional and institutional rules governing advice is generally advisory, not  
binding.

## SESSION 30 - ARTICLE 323 TURNS ADVICE INTO ACCOUNTABILITY

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 323 Turns Advice Into Accountability explains the exact constitutional and institutional rules governing article 323 turns advice into accountability.

**Technical definition:** Article 323 Turns Advice Into Accountability operates through the exact constitutional and institutional rules governing article 323 turns advice into accountability, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 323 Turns Advice Into Accountability is best understood through the exact constitutional and institutional rules governing article 323 turns advice into accountability.

### MUST-WRITE KEYWORDS

- **Articles 315-323**
- **Public Service Commission**
- **merit recruitment**
- **article**
- **turns**
- **advice**
- **into**
- **accountability**

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with article to explain the mechanism, and use turns for the decisive comparison or qualification.

[FACT] The UPSC reports annually to the President. The President lays the report before each House of Parliament with a memorandum explaining cases where advice was not accepted and reasons for non-acceptance.

[FACT] An SPSC reports to the Governor, who lays the report and corresponding memorandum before the State legislature.

[FACT] A Joint Commission reports annually to the Governor of each served State about work in relation to that State; each Governor lays the relevant report and memorandum before that State legislature.

## Visual 31 - Reporting routes

UPSC -> President -> Parliament + non-acceptance memorandum

SPSC -> Governor -> State Legislature + memorandum

Joint PSC -> each Governor (State-specific work)  
-> each State Legislature + memorandum

[ANALYSIS] Article 323 converts rejected advice from a private executive departure into a matter capable of legislative scrutiny.

## CLOSING RECALL FLOW - ARTICLE 323 TURNS ADVICE INTO ACCOUNTABILITY

START / CONCEPT: ARTICLE 323 TURNS ADVICE INTO ACCOUNTABILITY

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · article · turns · advice · into · accountability

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 323 turns advice into accountability.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 323 turns advice into accountability.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 323 turns advice into accountability beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Article 323 Turns Advice Into Accountability is best understood through the exact constitutional and institutional rules governing article 323 turns advice into accountability.

## SESSION 31 - ARTICLE 321: LEGISLATIVE EXTENSION

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 321: Legislative Extension explains the exact constitutional and institutional rules governing article 321: legislative extension.

**Technical definition:** Article 321: Legislative Extension operates through the exact constitutional and institutional rules governing article 321: legislative extension, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 321: Legislative Extension is best understood through the exact constitutional and institutional rules governing article 321: legislative extension.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- article
- legislative
- extension

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with article to explain the mechanism, and use legislative for the decisive comparison or qualification.

[FACT] Parliament or a State legislature may extend Commission functions to services of the Union/State and to services of a local authority, statutory body corporate or public institution.

### Visual 32 - Constitutional core and legislative extension

| Layer     | Source                                | Example scope                                                         |
|-----------|---------------------------------------|-----------------------------------------------------------------------|
| core      | Article 320                           | examinations and listed consultation                                  |
| extension | Act under Article 321                 | local authority, statutory corporation or public institution services |
| limit     | legislative competence + Constitution | cannot erase constitutional rights or judicial review                 |

[LIMIT] Article 321 is an enabling legislative route, not an automatic extension to every public-sector entity.

### CLOSING RECALL FLOW - ARTICLE 321: LEGISLATIVE EXTENSION

START / CONCEPT: ARTICLE 321: LEGISLATIVE EXTENSION

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · article · legislative · extension

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 321: legislative extension.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 321: legislative extension.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise article 321: legislative extension beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Article 321: Legislative Extension is best understood through the exact constitutional and institutional rules governing article 321: legislative extension.

## SESSION 32 - ARTICLE 322: CHARGED EXPENDITURE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Article 322: Charged Expenditure explains the exact constitutional and institutional rules governing article 322: charged expenditure.

**Technical definition:** Article 322: Charged Expenditure operates through the exact constitutional and institutional rules governing article 322: charged expenditure, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 322: Charged Expenditure is best understood through the exact constitutional and institutional rules governing article 322: charged expenditure.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- article
- charged
- expenditure

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with article to explain the mechanism, and use charged for the decisive comparison or qualification.

[FACT] Expenses of the UPSC or an SPSC, including salaries, allowances and pensions payable to or in respect of members or staff, are charged on the Consolidated Fund of India or the State respectively.

### Visual 33 - Charged versus voted

CHARGED EXPENDITURE  
included in budget  
|  
discussable  
|  
NOT submitted to vote  
|  
reduces annual majoritarian pressure on core Commission expenses

[LIMIT] Charged status protects the mode of authorisation; it does not automatically guarantee adequate staffing, modern technology or timely filling of vacancies.

### CLOSING RECALL FLOW - ARTICLE 322: CHARGED EXPENDITURE

START / CONCEPT: ARTICLE 322: CHARGED EXPENDITURE  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · article · charged · expenditure  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for article 322: charged expenditure.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of article 322: charged expenditure.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise article 322: charged expenditure beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Article 322: Charged Expenditure is best understood through the exact constitutional and institutional rules governing article 322: charged expenditure.

## SESSION 33 - UPSC VERSUS DOPT AND THE APPOINTING GOVERNMENT

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** The recruitment ecosystem is the division in which the Commission conducts assigned examinations and advice, and the executive creates posts, manages cadres and makes lawful appointments.

**Technical definition:** The Article 320 consultation and examination mandate operates within the executive personnel framework created under Article 309, valid recruitment rules and the constitutional equality code.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The UPSC is an independent recruitment adviser, not the whole personnel administration: constitutional legitimacy depends on a lawful chain from post creation and rules to selection, appointment and review.

### MUST-WRITE KEYWORDS

- Article 320
- Article 309
- DoPT
- appointing authority
- recruitment rules
- advisory function

**How to use them:** Use Article 309 and DoPT for recruitment rules and cadre control, Article 320 for UPSC examination and advice, and the appointing authority for the final lawful decision before evaluating independence.

## Visual 34 - Personnel-system allocation

| Function                                                      | Primary institutional owner                                          |
|---------------------------------------------------------------|----------------------------------------------------------------------|
| create/abolish post                                           | Government under law/rules                                           |
| frame recruitment/service rules                               | appropriate government/legislature, often DoPT coordination at Union |
| conduct specified competitive examination                     | UPSC/SPSC                                                            |
| advise on recruitment principles/suitability where applicable | UPSC/SPSC                                                            |
| issue appointment order                                       | appointing authority                                                 |
| cadre allocation, training and much career management         | Government/cadre-controlling authority                               |
| decide service dispute                                        | tribunal/court                                                       |

[ANALYSIS] The Commission is a merit gatekeeper, not the entire personnel state.

## CLOSING RECALL FLOW - UPSC VERSUS DOPT AND THE APPOINTING GOVERNMENT

START / CONCEPT: UPSC VERSUS DOPT AND THE APPOINTING GOVERNMENT

|  
v

EXACT TERMS: Article 320 · Article 309 · DoPT · appointing authority · recruitment rules · advisory function

|  
v

MECHANISM / ARGUMENT: Government defines the post and rules, the Commission conducts the assigned selection or consultation, the competent authority decides, and review bodies test legality.

|  
v

CONSEQUENCE / CONTRAST: Institutional separation protects neutral selection while preserving elected-government responsibility for public administration.

|  
v

UPSC TRAP / ANSWER-USE: Do not treat a UPSC recommendation as an appointment order, equate UPSC with DoPT or describe CAT as a recruitment body.

|  
v

ANSWER-GRABBING FORMULATION: The UPSC is an independent recruitment adviser, not the whole personnel administration: constitutional legitimacy depends on a lawful chain from post creation and rules to selection, appointment and review.

## SESSION 34 - RECRUITMENT-PROCESS BOUNDARIES

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Recruitment-Process Boundaries explains the exact constitutional and institutional rules governing recruitment-process boundaries.

**Technical definition:** Recruitment-Process Boundaries operates through the exact constitutional and institutional rules governing recruitment-process boundaries, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Recruitment-Process Boundaries is best understood through the exact constitutional and institutional rules governing recruitment-process boundaries.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- recruitment
- boundaries

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with recruitment to explain the mechanism, and use boundaries for the decisive comparison or qualification.

### Visual 35 - End-to-end recruitment chain

```
POST SANCTION
|
RECRUITMENT RULES + RESERVATION ROSTER
|
ADVERTISEMENT / NOTICE
|
APPLICATION + ACCESSIBILITY
|
EXAM / SHORTLIST / INTERVIEW
|
DOCUMENT + ELIGIBILITY VERIFICATION
|
PSC RECOMMENDATION / RESULT
|
APPOINTING AUTHORITY'S LAWFUL DECISION
|
PROBATION / SERVICE RULES
```

[LIMIT] A recommendation is neither the appointment order nor an immunity certificate for fraud, ineligibility or rule violation.

### CLOSING RECALL FLOW - RECRUITMENT-PROCESS BOUNDARIES

```
START / CONCEPT: RECRUITMENT-PROCESS BOUNDARIES
|
v
EXACT TERMS: Articles 315-323 • Public Service Commission • merit recruitment • recruitment •
boundaries
|
v
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural
safeguard and accountability route for recruitment-process boundaries.
|
v
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam
consequence of recruitment-process boundaries.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise recruitment-process boundaries beyond its exact office,
Article, authority or legal effect.
|
v
ANSWER-GRABBING FORMULATION: Recruitment-Process Boundaries is best understood through the exact
constitutional and institutional rules governing recruitment-process boundaries.
```

## SESSION 35 - LATERAL RECRUITMENT: PRECISE CONSTITUTIONAL RELATIONSHIP

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Lateral Recruitment: Precise Constitutional Relationship explains the exact constitutional and institutional rules governing lateral recruitment: precise constitutional relationship.

**Technical definition:** Lateral Recruitment: Precise Constitutional Relationship operates through the exact constitutional and institutional rules governing lateral recruitment: precise constitutional relationship, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Lateral Recruitment: Precise Constitutional Relationship is best understood through the exact constitutional and institutional rules governing lateral recruitment: precise constitutional relationship.

### MUST-WRITE KEYWORDS



- **Articles 315-323**
- **Public Service Commission**
- **merit recruitment**
- **lateral**
- **recruitment**
- **precise**
- **constitutional**
- **relationship**

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with lateral to explain the mechanism, and use recruitment for the decisive comparison or qualification.

[FACT] Lateral recruitment is a mode of filling identified posts; it is not a constitutional amendment and does not displace Articles 14, 16, 309 or the applicable reservation and recruitment rules.

[CURRENT] The 15 March 2024 amendment to the UPSC Exemption from Consultation Regulations exempts specified Group A and Group B posts up to pay level 13A when filled through the named deputation/re-employment, short-term-contract, absorption or composite modes.

[LIMIT] The instrument:

- does not say every lateral post is exempt;
- does not decide the rule for posts above its specified coverage;
- does not itself resolve reservation design;
- does not prohibit government from engaging UPSC where the operative framework provides; and
- does not make a contract appointment constitutionally immune from equality review.

### Visual 36 - Lateral-entry legality checklist

| Check        | Question                                                                              |
|--------------|---------------------------------------------------------------------------------------|
| post         | what is the sanctioned post and pay level?                                            |
| rule         | what do recruitment rules prescribe?                                                  |
| mode         | contract, deputation, absorption, direct selection or composite?                      |
| consultation | does Article 320 plus an exemption regulation require/dispense with PSC consultation? |
| equality     | are Articles 14 and 16 satisfied?                                                     |
| reservation  | what roster/constitutional/statutory rule applies?                                    |
| transparency | were criteria and reasons published before selection?                                 |
| review       | is the decision free from mala fides, arbitrariness and rule breach?                  |

### CLOSING RECALL FLOW - LATERAL RECRUITMENT: PRECISE CONSTITUTIONAL RELATIONSHIP

START / CONCEPT: LATERAL RECRUITMENT: PRECISE CONSTITUTIONAL RELATIONSHIP

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · lateral · recruitment · precise · constitutional · relationship

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for lateral recruitment: precise constitutional relationship.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of lateral recruitment: precise constitutional relationship.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise lateral recruitment: precise constitutional relationship beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Lateral Recruitment: Precise Constitutional Relationship is best understood through the exact constitutional and institutional rules governing lateral recruitment: precise constitutional relationship.

## SESSION 36 - ALL-INDIA SERVICES AND PSC CROSS-LINK

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** All-India Services And Psc Cross-Link explains the exact constitutional and institutional rules governing all-india services and psc cross-link.

**Technical definition:** All-India Services And Psc Cross-Link operates through the exact constitutional and institutional rules governing all-india services and psc cross-link, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

All-India Services And Psc Cross-Link is best understood through the exact constitutional and institutional rules governing all-india services and psc cross-link.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- all
- india
- services
- psc
- cross

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with all to explain the mechanism, and use india for the decisive comparison or qualification.

[FACT] Article 312 and the All-India Services framework belong to the Public Services owner. UPSC conducts the Civil Services Examination and participates in specified promotion-selection processes under applicable service rules.

[LIMIT] The UPSC does not create an All-India Service, allocate every cadre power, manage all postings or decide every disciplinary penalty.

### Visual 37 - AIS interface

ARTICLE 312 / PARLIAMENTARY LAW  
creates/governs AIS framework  
|  
UPSC recruitment/selection role under applicable rules  
|  
CENTRE + STATES / CADRE AUTHORITIES  
manage service after entry  
|  
TRIBUNAL / COURTS  
review covered service disputes

### CLOSING RECALL FLOW - ALL-INDIA SERVICES AND PSC CROSS-LINK

START / CONCEPT: ALL-INDIA SERVICES AND PSC CROSS-LINK  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · all · india ·  
services · psc · cross  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural  
safeguard and accountability route for all-india services and psc cross-link.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam  
consequence of all-india services and psc cross-link.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise all-india services and psc cross-link beyond its exact  
office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: All-India Services And Psc Cross-Link is best understood through the  
exact constitutional and institutional rules governing all-india services and psc cross-link.

## SESSION 37 - TRIBUNALS AND RECRUITMENT

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Tribunals And Recruitment explains the exact constitutional and institutional rules governing tribunals and recruitment.

**Technical definition:** Tribunals And Recruitment operates through the exact constitutional and institutional rules governing tribunals and recruitment, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Tribunals And Recruitment is best understood through the exact constitutional and institutional rules governing tribunals and recruitment.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- tribunals
- recruitment

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with tribunals to explain the mechanism, and use recruitment for the decisive comparison or qualification.

[FACT] Article 323A permits Parliament to create administrative tribunals for recruitment and service-condition disputes. The Administrative Tribunals Act, 1985 establishes the CAT framework.

[FACT] *L. Chandra Kumar* keeps tribunal decisions subject to High Court review under Articles 226/227.

### Visual 38 - Commission versus tribunal

| Public Service Commission         | Administrative tribunal              |
|-----------------------------------|--------------------------------------|
| recruits/advises                  | adjudicates covered disputes         |
| constitutional under Arts 315-323 | statutory under Art 323A legislation |
| recommendation/examination role   | remedial/decisional role             |
| not a court                       | quasi-judicial adjudicatory forum    |

### CLOSING RECALL FLOW - TRIBUNALS AND RECRUITMENT

START / CONCEPT: TRIBUNALS AND RECRUITMENT

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · tribunals · recruitment

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for tribunals and recruitment.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of tribunals and recruitment.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise tribunals and recruitment beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Tribunals And Recruitment is best understood through the exact constitutional and institutional rules governing tribunals and recruitment.

## SESSION 38 - JUDICIAL REVIEW: NEITHER ZERO NOR APPELLATE RE-MARKING

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Judicial Review: Neither Zero Nor Appellate Re-Marking explains the exact constitutional and institutional rules governing judicial review: neither zero nor appellate re-marking.

**Technical definition:** Judicial Review: Neither Zero Nor Appellate Re-Marking operates through the exact constitutional and institutional rules governing judicial review: neither zero nor appellate re-marking, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Judicial Review: Neither Zero Nor Appellate Re-Marking is best understood through the exact constitutional and institutional rules governing judicial review: neither zero nor appellate re-marking.

### MUST-WRITE KEYWORDS

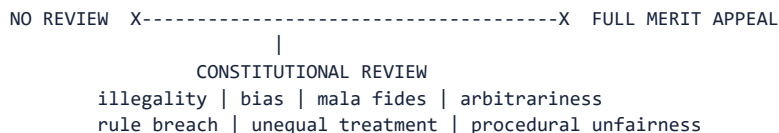
- judicial review
- selection fairness
- recruitment rules
- judicial
- review
- neither
- zero
- nor

**How to use them:** Frame the answer through judicial review; define selection fairness, connect recruitment rules with judicial to explain the mechanism, and use review for the decisive comparison or qualification.

[FACT] Courts may intervene where a selection is infected by illegality, mala fides, bias, arbitrariness, breach of statutory rules, unequal treatment or violation of the announced process.

[FACT] Courts ordinarily do not sit as an expert selection committee to re-evaluate comparative merit.

### Visual 39 - Review spectrum



[ANALYSIS] Judicial restraint protects expert assessment; judicial review protects constitutional legitimacy.

### CLOSING RECALL FLOW - JUDICIAL REVIEW: NEITHER ZERO NOR APPELLATE RE-MARKING

START / CONCEPT: JUDICIAL REVIEW: NEITHER ZERO NOR APPELLATE RE-MARKING

|

v

EXACT TERMS: judicial review · selection fairness · recruitment rules · judicial · review · neither  
· zero · nor

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for judicial review: neither zero nor appellate re-marking.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of judicial review: neither zero nor appellate re-marking.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise judicial review: neither zero nor appellate re-marking beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Judicial Review: Neither Zero Nor Appellate Re-Marking is best understood through the exact constitutional and institutional rules governing judicial review: neither zero nor appellate re-marking.

## SESSION 39 - ASHOK KUMAR YADAV: BIAS AND INTERVIEW FAIRNESS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Ashok Kumar Yadav: Bias And Interview Fairness explains the exact constitutional and institutional rules governing ashok kumar yadav: bias and interview fairness.

**Technical definition:** Ashok Kumar Yadav: Bias And Interview Fairness operates through the exact constitutional and institutional rules governing ashok kumar yadav: bias and interview fairness, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Ashok Kumar Yadav: Bias And Interview Fairness is best understood through the exact constitutional and institutional rules governing ashok kumar yadav: bias and interview fairness.

### MUST-WRITE KEYWORDS

- judicial review
- selection fairness
- recruitment rules
- ashok
- kumar

- yadav
- bias
- interview

**How to use them:** Frame the answer through judicial review; define selection fairness, connect recruitment rules with ashok to explain the mechanism, and use kumar for the decisive comparison or qualification.

[FACT] *Ashok Kumar Yadav v. State of Haryana* scrutinised Haryana PSC selection, including interview weight and participation concerns involving relations of Commission members.

[ANALYSIS] Its enduring lesson is institutional: a formally expert body can still produce unconstitutional selection if bias safeguards and assessment design are weak.

#### Visual 40 - Bias-control protocol

| Risk                           | Control                              |
|--------------------------------|--------------------------------------|
| member's relationship/conflict | disclosure and recusal               |
| excessive subjective weight    | proportionate, pre-declared criteria |
| unstructured interview         | scoring rubric and records           |
| opaque moderation              | documented and auditable method      |
| selective rule application     | uniform treatment                    |

[LIMIT] Do not turn a case-specific discussion of interview percentages into an inflexible constitutional number for every service.

#### CLOSING RECALL FLOW - ASHOK KUMAR YADAV: BIAS AND INTERVIEW FAIRNESS

START / CONCEPT: ASHOK KUMAR YADAV: BIAS AND INTERVIEW FAIRNESS

|  
v

EXACT TERMS: judicial review · selection fairness · recruitment rules · ashok · kumar · yadav · bias · interview

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for ashok kumar yadav: bias and interview fairness.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of ashok kumar yadav: bias and interview fairness.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise ashok kumar yadav: bias and interview fairness beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Ashok Kumar Yadav: Bias And Interview Fairness is best understood through the exact constitutional and institutional rules governing ashok kumar yadav: bias and interview fairness.

## SESSION 40 - STABLE RULES: K. MANJUSREE AND TEJ PRAKASH PATHAK

#### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Stable Rules: K. Manjusree And Tej Prakash Pathak explains the exact constitutional and institutional rules governing stable rules: k. manjusree and tej prakash pathak.

**Technical definition:** Stable Rules: K. Manjusree And Tej Prakash Pathak operates through the exact constitutional and institutional rules governing stable rules: k. manjusree and tej prakash pathak, distinguishing authority, procedure, safeguards and limits.

#### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Stable Rules: K. Manjusree And Tej Prakash Pathak is best understood through the exact constitutional and institutional rules governing stable rules: k. manjusree and tej prakash pathak.

### MUST-WRITE KEYWORDS

- judicial review
- selection fairness
- recruitment rules
- stable
- rules
- manjusree
- tej
- prakash

**How to use them:** Frame the answer through judicial review; define selection fairness, connect recruitment rules with stable to explain the mechanism, and use rules for the decisive comparison or qualification.

[FACT] *K. Manjusree* disallowed introducing a minimum interview benchmark after the selection process where the governing framework had not prescribed it.

[CURRENT] The Constitution Bench in *Tej Prakash Pathak*, 2024 INSC 847, reaffirmed the core stability principle while locating it in Articles 14 and 16: eligibility/selection criteria cannot be changed after commencement unless the governing rules permit a lawful, non-arbitrary course.

### Visual 41 - Rules-of-the-game test

Was criterion/rule disclosed in governing rules or notice?

NO ---- introduced after process? ----> presumptive arbitrariness

YES

was application uniform, lawful and non-arbitrary?

constitutional validity depends on answer

[LIMIT] Administrative clarification is not always a prohibited change; ask whether it alters eligibility, evaluation or outcome criteria.

### CLOSING RECALL FLOW - STABLE RULES: K. MANJUSREE AND TEJ PRAKASH PATHAK

START / CONCEPT: STABLE RULES: K. MANJUSREE AND TEJ PRAKASH PATHAK

|  
v

EXACT TERMS: judicial review · selection fairness · recruitment rules · stable · rules · manjusree  
· tej · prakash

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for stable rules: k. manjusree and tej prakash pathak.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of stable rules: k. manjusree and tej prakash pathak.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise stable rules: k. manjusree and tej prakash pathak beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Stable Rules: K. Manjusree And Tej Prakash Pathak is best understood through the exact constitutional and institutional rules governing stable rules: k. manjusree and tej prakash pathak.

# SESSION 41 - SELECT LIST DOES NOT CREATE AN INDEFEASIBLE RIGHT

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Select List Does Not Create An Indefeasible Right explains the exact constitutional and institutional rules governing select list does not create an indefeasible right.

**Technical definition:** Select List Does Not Create An Indefeasible Right operates through the exact constitutional and institutional rules governing select list does not create an indefeasible right, distinguishing authority, procedure, safeguards and limits.

## ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Select List Does Not Create An Indefeasible Right is best understood through the exact constitutional and institutional rules governing select list does not create an indefeasible right.

## MUST-WRITE KEYWORDS

- judicial review
- selection fairness
- recruitment rules
- select
- list
- not
- create

**How to use them:** Frame the answer through judicial review; define selection fairness, connect recruitment rules with select to explain the mechanism, and use list for the decisive comparison or qualification.

[FACT] *Shankarsan Dash v. Union of India* held that notification of vacancies and inclusion in a select list do not create an indefeasible right to appointment.

[FACT] Government may decide not to fill all vacancies for bona fide reasons, but the decision cannot be arbitrary.

## Visual 42 - Recommendation-to-appointment boundary

SUCCESS IN SELECTION  
|  
fair consideration + lawful treatment  
|  
NO automatic appointment right  
|  
government may not act arbitrarily, discriminatorily or in bad faith

[ANALYSIS] The candidate has a right against unconstitutional decision-making, not ownership of the post.

## CLOSING RECALL FLOW - SELECT LIST DOES NOT CREATE AN INDEFEASIBLE RIGHT



START / CONCEPT: SELECT LIST DOES NOT CREATE AN INDEFEASIBLE RIGHT

|

v

EXACT TERMS: judicial review · selection fairness · recruitment rules · select · list · not · create

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for select list does not create an indefeasible right.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of select list does not create an indefeasible right.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise select list does not create an indefeasible right beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Select List Does Not Create An Indefeasible Right is best understood through the exact constitutional and institutional rules governing select list does not create an indefeasible right.

## SESSION 42 - M.V. THIMMAIAH: LIMITED REVIEW OF EXPERT RECOMMENDATIONS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** M.V. Thimmaiah: Limited Review Of Expert Recommendations explains the exact constitutional and institutional rules governing m.v. thimmaiah: limited review of expert recommendations.

**Technical definition:** M.V. Thimmaiah: Limited Review Of Expert Recommendations operates through the exact constitutional and institutional rules governing m.v. thimmaiah: limited review of expert recommendations, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

M.V. Thimmaiah: Limited Review Of Expert Recommendations is best understood through the exact constitutional and institutional rules governing m.v. thimmaiah: limited review of expert recommendations.

### MUST-WRITE KEYWORDS

- judicial review
- selection fairness
- recruitment rules
- thimmaiah
- limited
- review
- expert
- recommendations

**How to use them:** Frame the answer through judicial review; define selection fairness, connect recruitment rules with thimmaiah to explain the mechanism, and use limited for the decisive comparison or qualification.

[FACT] *M.V. Thimmaiah v. UPSC* states that selection-committee recommendations are ordinarily not challengeable except on grounds such as mala fides or serious violation of statutory rules; courts do not act as appellate authorities over expert comparative assessment.

### Visual 43 - Court's question set

| Court may ask                     | Court ordinarily will not do                    |
|-----------------------------------|-------------------------------------------------|
| Was the body legally constituted? | replace experts' marks with its preference      |
| Were rules followed?              | conduct a fresh interview                       |
| Was there bias/mala fide?         | rank candidates on perceived merit              |
| Was equality violated?            | rewrite recruitment policy without legal defect |

### CLOSING RECALL FLOW - M.V. THIMMAIAH: LIMITED REVIEW OF EXPERT RECOMMENDATIONS

START / CONCEPT: M.V. THIMMAIAH: LIMITED REVIEW OF EXPERT RECOMMENDATIONS

|  
v

EXACT TERMS: judicial review · selection fairness · recruitment rules · thimmaiah · limited · review · expert · recommendations

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for m.v. thimmaiah: limited review of expert recommendations.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of m.v. thimmaiah: limited review of expert recommendations.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise m.v. thimmaiah: limited review of expert recommendations beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: M.V. Thimmaiah: Limited Review Of Expert Recommendations is best understood through the exact constitutional and institutional rules governing m.v. thimmaiah: limited review of expert recommendations.

## SESSION 43 - PUBLIC EXAMINATIONS ACT, 2024: VERIFIED UPSC APPLICATION

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Public Examinations Act, 2024: Verified UPSC Application explains the exact constitutional and institutional rules governing public examinations act, 2024: verified upsc application.

**Technical definition:** Public Examinations Act, 2024: Verified UPSC Application operates through the exact constitutional and institutional rules governing public examinations act, 2024: verified upsc application, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Public Examinations Act, 2024: Verified UPSC Application is best understood through the exact constitutional and institutional rules governing public examinations act, 2024: verified upsc application.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- examinations
- act
- verified

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with examinations to explain the mechanism, and use act for the decisive comparison or qualification.

[CURRENT] The Act's Schedule expressly covers **any examination conducted by the Union Public Service Commission**.

[FACT] Section 3 lists unfair means including question/answer-key leakage, unauthorised access, assistance, answer-sheet tampering, unauthorised assessment alteration, security violations, computer/network tampering, manipulation of shifts/seating, fake websites, fake examinations, fake admit cards and fake offer letters, where the statutory requirements are met.

[FACT] The Act also covers conspiracy, service-provider responsibility, reporting, cognizable/non-bailable/non-compoundable offences, investigation and organised crime.

[LIMIT] It does not constitutionalise every operational choice of UPSC, replace service/recruitment rules or eliminate the need for evidence and due process.

#### Visual 44 - Integrity-law architecture

```
PREVENT
norms + centre controls + digital/physical security
|
DETECT
monitoring + incident evidence + audit trail
|
REPORT
venue -> coordinator -> regional/public examination authority
|
INVESTIGATE
police / authorised agency under Act
|
PUNISH
individual / service provider / organised-crime consequences
|
REMEDiate
candidate communication + lawful re-exam/result decision + review
```

#### CLOSING RECALL FLOW - PUBLIC EXAMINATIONS ACT, 2024: VERIFIED UPSC APPLICATION

```
START / CONCEPT: PUBLIC EXAMINATIONS ACT, 2024: VERIFIED UPSC APPLICATION
|
v
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · examinations · act
· verified
|
v
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural
safeguard and accountability route for public examinations act, 2024: verified upsc application.
|
v
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam
consequence of public examinations act, 2024: verified upsc application.
|
v
UPSC TRAP / ANSWER-USE: Do not generalise public examinations act, 2024: verified upsc application
beyond its exact office, Article, authority or legal effect.
|
v
ANSWER-GRABBING FORMULATION: Public Examinations Act, 2024: Verified UPSC Application is best
understood through the exact constitutional and institutional rules governing public examinations
act, 2024: verified upsc application.
```

## SESSION 44 - PUBLIC EXAMINATIONS RULES, 2024

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Public Examinations Rules, 2024 explains the exact constitutional and institutional rules governing public examinations rules, 2024.

**Technical definition:** Public Examinations Rules, 2024 operates through the exact constitutional and institutional rules governing public examinations rules, 2024, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Public Examinations Rules, 2024 is best understood through the exact constitutional and institutional rules governing public examinations rules, 2024.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- examinations
- rules

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with examinations to explain the mechanism, and use rules for the decisive comparison or qualification.

[CURRENT] The Rules define centre coordinators, regional officers, venue-in-charge responsibilities and monitoring.

[CURRENT] Rule 5 provides for notified norms, standards and guidelines for computer-based tests covering physical and digital infrastructure, centre registration, layout, nodes, servers/networks, platform specifications, readiness audit, biometric check-in, security, seat allocation, question loading, invigilation, post-exam activities and scribes.

[CURRENT] Rule 7 establishes incident-reporting pathways; rule 9 requires every public examination authority to set up an implementation-monitoring mechanism.

### Visual 45 - Computer-based-test security layers

| Layer     | Verified rule theme                        | Reform use                            |
|-----------|--------------------------------------------|---------------------------------------|
| centre    | registration, space and seating            | reduce unverified venues              |
| device    | node and server specifications             | baseline hardening                    |
| network   | network/platform standards                 | integrity and availability            |
| people    | biometric, screening, invigilation         | identity and access control           |
| content   | question loading/distribution controls     | prevent unauthorised access           |
| audit     | pre-exam readiness and post-exam checklist | evidence before/after event           |
| inclusion | scribe guidelines                          | security without excluding candidates |

### CLOSING RECALL FLOW - PUBLIC EXAMINATIONS RULES, 2024

START / CONCEPT: PUBLIC EXAMINATIONS RULES, 2024

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · examinations · rules

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for public examinations rules, 2024.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of public examinations rules, 2024.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise public examinations rules, 2024 beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Public Examinations Rules, 2024 is best understood through the exact constitutional and institutional rules governing public examinations rules, 2024.

## SESSION 45 - INTEGRITY CHALLENGES BEYOND CRIMINAL LAW

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Integrity Challenges Beyond Criminal Law explains the exact constitutional and institutional rules governing integrity challenges beyond criminal law.

**Technical definition:** Integrity Challenges Beyond Criminal Law operates through the exact constitutional and institutional rules governing integrity challenges beyond criminal law, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Integrity Challenges Beyond Criminal Law is best understood through the exact constitutional and institutional rules governing integrity challenges beyond criminal law.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- integrity
- challenges
- beyond
- criminal
- law

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with integrity to explain the mechanism, and use challenges for the decisive comparison or qualification.

### Visual 46 - Threat-control matrix

| Challenge                 | Institutional risk            | Calibrated control                                             |
|---------------------------|-------------------------------|----------------------------------------------------------------|
| paper leak                | equal opportunity destroyed   | segmented custody, access logs, criminal enforcement           |
| impersonation             | false identity                | proportionate identity/biometric controls + exception handling |
| cyber compromise          | question/result manipulation  | hardened systems, audit trails, independent testing            |
| opaque scaling/moderation | distrust and litigation       | pre-declared method and reviewable records                     |
| long calendar delays      | candidate cost and vacancies  | realistic calendar and reasoned updates                        |
| result opacity            | suspicion and grievance load  | marks/cut-off/result disclosure as law permits                 |
| weak grievance handling   | avoidable litigation          | trackable, time-bound, reasoned response                       |
| SPSC political capture    | patronage and legitimacy loss | transparent appointment criteria, conflict checks, audit       |

[LIMIT] Security controls must protect privacy, disability accommodation and natural justice; “maximum secrecy” alone is not good governance.

### CLOSING RECALL FLOW - INTEGRITY CHALLENGES BEYOND CRIMINAL LAW

START / CONCEPT: INTEGRITY CHALLENGES BEYOND CRIMINAL LAW

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · integrity · challenges · beyond · criminal · law

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for integrity challenges beyond criminal law.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of integrity challenges beyond criminal law.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise integrity challenges beyond criminal law beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Integrity Challenges Beyond Criminal Law is best understood through the exact constitutional and institutional rules governing integrity challenges beyond criminal law.

## SESSION 46 - TRANSPARENT CALENDARS, RESULTS AND GRIEVANCE SYSTEMS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Transparent Calendars, Results And Grievance Systems explains the exact constitutional and institutional rules governing transparent calendars, results and grievance systems.

**Technical definition:** Transparent Calendars, Results And Grievance Systems operates through the exact constitutional and institutional rules governing transparent calendars, results and grievance systems, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Transparent Calendars, Results And Grievance Systems is best understood through the exact constitutional and institutional rules governing transparent calendars, results and grievance systems.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- transparent
- calendars
- results
- grievance
- systems

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with transparent to explain the mechanism, and use calendars for the decisive comparison or qualification.

[CURRENT] UPSC and official State PSC portals such as Kerala PSC and TNPSC publish examination programmes/planners and result material; official contact, RTI and grievance channels provide routes for candidate communication.

[ANALYSIS] A credible recruitment institution should publish:

1. a realistic calendar and promptly reasoned deviations;
2. clear eligibility and evaluation rules before the process;
3. result, marks and cut-off information within legal/privacy limits;
4. answer-key objection or representation processes where provided;

5. grievance tracking and speaking responses; and
6. aggregate integrity/audit information that does not compromise future security.

### Visual 47 - Transparency ladder

NOTICE

- > RULES
- > CALENDAR
- > PROCESS UPDATES
- > RESULT / MARKS / CUT-OFF
- > REASONS / GRIEVANCE
- > ANNUAL REPORT / LEGISLATIVE SCRUTINY

### CLOSING RECALL FLOW - TRANSPARENT CALENDARS, RESULTS AND GRIEVANCE SYSTEMS

START / CONCEPT: TRANSPARENT CALENDARS, RESULTS AND GRIEVANCE SYSTEMS

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · transparent · calendars · results · grievance · systems

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for transparent calendars, results and grievance systems.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of transparent calendars, results and grievance systems.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise transparent calendars, results and grievance systems beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Transparent Calendars, Results And Grievance Systems is best understood through the exact constitutional and institutional rules governing transparent calendars, results and grievance systems.

## SESSION 47 - SPSC INTEGRITY AND CAPACITY RISKS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** SPSC Integrity And Capacity Risks explains the exact constitutional and institutional rules governing spsc integrity and capacity risks.

**Technical definition:** SPSC Integrity And Capacity Risks operates through the exact constitutional and institutional rules governing spsc integrity and capacity risks, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

SPSC Integrity And Capacity Risks is best understood through the exact constitutional and institutional rules governing spsc integrity and capacity risks.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- spsc
- integrity
- capacity
- risks

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with spsc to explain the mechanism, and use integrity for the decisive comparison or qualification.

## Visual 48 - Risk diagnosis

| Risk                               | Why SPSC may be vulnerable                | Constitutional answer                                      |
|------------------------------------|-------------------------------------------|------------------------------------------------------------|
| vacancies/delayed appointments     | small bench loses quorum/capacity         | timely, criteria-based appointments                        |
| compromised membership             | local political networks                  | conflict disclosure and transparent selection              |
| repeated exam delay                | limited technical/administrative capacity | shared standards, trained secretariat, audited vendors     |
| paper leak                         | decentralised chain and vendor risk       | 2024 Act where applicable + State law + security protocols |
| litigation after shifting criteria | weak rule drafting                        | stable rules and <i>Tej Prakash Pathak</i> compliance      |
| non-acceptance without scrutiny    | advisory nature                           | Article 323 memorandum and committee examination           |
| secretariat dependence             | executive control over staff/technology   | rule-based staffing and functional budget autonomy         |

[LIMIT] SPSC performance varies by State. Do not generalise one scandal, vacancy or reform to every Commission.

## CLOSING RECALL FLOW - SPSC INTEGRITY AND CAPACITY RISKS

START / CONCEPT: SPSC INTEGRITY AND CAPACITY RISKS

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · spsc · integrity · capacity · risks

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for spsc integrity and capacity risks.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of spsc integrity and capacity risks.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise spsc integrity and capacity risks beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: SPSC Integrity And Capacity Risks is best understood through the exact constitutional and institutional rules governing spsc integrity and capacity risks.

## SESSION 48 - NATIONAL CONFERENCE AND HORIZONTAL LEARNING

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** National Conference And Horizontal Learning explains the exact constitutional and institutional rules governing national conference and horizontal learning.

**Technical definition:** National Conference And Horizontal Learning operates through the exact constitutional and institutional rules governing national conference and horizontal learning, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

National Conference And Horizontal Learning is best understood through the exact constitutional and institutional rules governing national conference and horizontal learning.

### MUST-WRITE KEYWORDS

- Articles 315-323



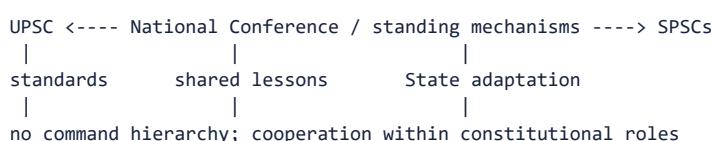
- **Public Service Commission**
- **merit recruitment**
- **national**
- **conference**
- **horizontal**
- **learning**

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with national to explain the mechanism, and use conference for the decisive comparison or qualification.

[CURRENT] UPSC's official material describes the National Conference of Chairmen of State Public Service Commissions as a forum for recruitment methods, personnel policy and institutional practice; the first conference was held in 1949, and the UPSC Chair has served as ex officio conference chair since 1999.

[ANALYSIS] Horizontal learning can spread question-bank security, digital standards, vendor controls and grievance design without erasing State constitutional identity.

### Visual 49 - Cooperative integrity network



### CLOSING RECALL FLOW - NATIONAL CONFERENCE AND HORIZONTAL LEARNING

START / CONCEPT: NATIONAL CONFERENCE AND HORIZONTAL LEARNING



EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · national · conference · horizontal · learning



MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for national conference and horizontal learning.



CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of national conference and horizontal learning.



UPSC TRAP / ANSWER-USE: Do not generalise national conference and horizontal learning beyond its exact office, Article, authority or legal effect.



ANSWER-GRABBING FORMULATION: National Conference And Horizontal Learning is best understood through the exact constitutional and institutional rules governing national conference and horizontal learning.

## SESSION 49 - REFORM MENU: ADOPTED LAW VERSUS PROPOSAL

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Reform Menu: Adopted Law Versus Proposal explains the exact constitutional and institutional rules governing reform menu: adopted law versus proposal.

**Technical definition:** Reform Menu: Adopted Law Versus Proposal operates through the exact constitutional and institutional rules governing reform menu: adopted law versus proposal, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reform Menu: Adopted Law Versus Proposal is best understood through the exact constitutional and institutional rules governing reform menu: adopted law versus proposal.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- reform
- menu
- adopted
- law
- proposal

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with reform to explain the mechanism, and use menu for the decisive comparison or qualification.

### Visual 50 - Reform-status matrix

| Reform                                          | Status on control date              | Safe answer                                        |
|-------------------------------------------------|-------------------------------------|----------------------------------------------------|
| Articles 315-323 safeguards                     | constitutional law                  | binding baseline                                   |
| Public Examinations Act/Rules 2024              | operative Union law/rules           | applies where statutory definition/Schedule covers |
| 15 March 2024 consultation-regulation amendment | notified regulation                 | apply exact post/mode/level                        |
| calendars/results/grievance portals             | administrative practice             | evaluate quality, not existence alone              |
| transparent PSC appointment criteria            | reform proposal in many debates     | desirable, not adopted constitutional rule         |
| collegium for PSC appointments                  | not located as adopted law          | never present as current law                       |
| fixed recruitment timelines                     | partly administrative/rule-specific | propose with exception and reasons                 |
| independent vendor/cyber audit                  | governance reform                   | preserve security and accountability               |

### CLOSING RECALL FLOW - REFORM MENU: ADOPTED LAW VERSUS PROPOSAL

START / CONCEPT: REFORM MENU: ADOPTED LAW VERSUS PROPOSAL

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · reform · menu · adopted · law · proposal

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for reform menu: adopted law versus proposal.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of reform menu: adopted law versus proposal.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise reform menu: adopted law versus proposal beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Reform Menu: Adopted Law Versus Proposal is best understood through the exact constitutional and institutional rules governing reform menu: adopted law versus proposal.

## SESSION 50 - REFORM PRINCIPLES

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Reform Principles explains the exact constitutional and institutional rules governing reform principles.

**Technical definition:** Reform Principles operates through the exact constitutional and institutional rules governing reform principles, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reform Principles is best understood through the exact constitutional and institutional rules governing reform principles.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- reform
- principles

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with reform to explain the mechanism, and use principles for the decisive comparison or qualification.

### Visual 51 - Seven-part reform framework

APPOINTMENT QUALITY  
+  
MEMBER INTEGRITY  
+  
SECRETARIAT CAPACITY  
+  
SECURE EXAM DESIGN  
+  
STABLE RULES  
+  
REASONED GRIEVANCE / RESULT DISCLOSURE  
+  
ARTICLE 323 LEGISLATIVE ACCOUNTABILITY  
=  
TRUSTED MERIT COMMISSION

[ANALYSIS] Reform should strengthen the lifecycle, not merely add penalties after a leak.

### CLOSING RECALL FLOW - REFORM PRINCIPLES

START / CONCEPT: REFORM PRINCIPLES  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · reform · principles  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for reform principles.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of reform principles.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise reform principles beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Reform Principles is best understood through the exact constitutional and institutional rules governing reform principles.

# SESSION 51 - FEDERAL SIGNIFICANCE

## DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Federal Significance explains the exact constitutional and institutional rules governing federal significance.

**Technical definition:** Federal Significance operates through the exact constitutional and institutional rules governing federal significance, distinguishing authority, procedure, safeguards and limits.

## ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Federal Significance is best understood through the exact constitutional and institutional rules governing federal significance.

## MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- federal
- significance

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with federal to explain the mechanism, and use significance for the decisive comparison or qualification.

## Visual 52 - Federal balance

| Design choice                          | Federal meaning                                      |
|----------------------------------------|------------------------------------------------------|
| separate SPSC for each State           | State-specific recruitment identity                  |
| Governor appoints SPSC                 | State executive connection                           |
| President removes all PSC members      | insulation from immediate State retaliation          |
| Joint Commission route                 | voluntary inter-State pooling with parliamentary law |
| UPSC may serve State                   | cooperative flexibility                              |
| State legislature receives SPSC report | State democratic accountability                      |

[ANALYSIS] The SPSC is State-rooted in appointment and reporting but Union-insulated at removal. This is a deliberate federal asymmetry, not an accidental inconsistency.

## CLOSING RECALL FLOW - FEDERAL SIGNIFICANCE

START / CONCEPT: FEDERAL SIGNIFICANCE

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · federal · significance

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for federal significance.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of federal significance.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise federal significance beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Federal Significance is best understood through the exact constitutional and institutional rules governing federal significance.

## SESSION 52 - ACCOUNTABILITY WITHOUT EXECUTIVE CAPTURE

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Accountability Without Executive Capture explains the exact constitutional and institutional rules governing accountability without executive capture.

**Technical definition:** Accountability Without Executive Capture operates through the exact constitutional and institutional rules governing accountability without executive capture, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Accountability Without Executive Capture is best understood through the exact constitutional and institutional rules governing accountability without executive capture.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- accountability
- without
- executive
- capture

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with accountability to explain the mechanism, and use without for the decisive comparison or qualification.

### Visual 53 - Accountability channels

CONSTITUTIONAL TEXT

|  
legislative scrutiny <- annual report + non-acceptance reasons  
|  
judicial review <- legality, equality, bias, mala fides  
|  
public/RTI transparency <- rules, notices, results, reports  
|  
internal audit/security <- evidence and controls  
|  
executive responsibility <- lawful appointment and administration

[LIMIT] Accountability does not justify day-to-day political direction of selection results.

### CLOSING RECALL FLOW - ACCOUNTABILITY WITHOUT EXECUTIVE CAPTURE

START / CONCEPT: ACCOUNTABILITY WITHOUT EXECUTIVE CAPTURE

|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · accountability ·  
without · executive · capture

|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural  
safeguard and accountability route for accountability without executive capture.

|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam  
consequence of accountability without executive capture.

|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise accountability without executive capture beyond its exact  
office, Article, authority or legal effect.

|  
v  
ANSWER-GRABBING FORMULATION: Accountability Without Executive Capture is best understood through  
the exact constitutional and institutional rules governing accountability without executive capture.

## SESSION 53 - COMMON ANALYTICAL TENSIONS

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Common Analytical Tensions explains the exact constitutional and institutional rules governing common analytical tensions.

**Technical definition:** Common Analytical Tensions operates through the exact constitutional and institutional rules governing common analytical tensions, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Common Analytical Tensions is best understood through the exact constitutional and institutional rules governing common analytical tensions.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- common
- analytical
- tensions

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with common to explain the mechanism, and use analytical for the decisive comparison or qualification.

### Visual 54 - Tension and reconciliation

| Tension                           | False binary                      | Reconciliation                                           |
|-----------------------------------|-----------------------------------|----------------------------------------------------------|
| merit vs representation           | exam or reservation               | lawful merit within equal-opportunity/reservation design |
| independence vs accountability    | secrecy or capture                | autonomy + reasons + reporting + review                  |
| expertise vs judicial review      | experts or courts                 | expert merits + court legality control                   |
| speed vs fairness                 | instant result or endless hearing | pre-declared process + time-bound remedy                 |
| security vs transparency          | reveal everything or nothing      | disclose governance/audit, protect attack surface        |
| Union standards vs State autonomy | central command or fragmentation  | cooperative standards with State adaptation              |

### CLOSING RECALL FLOW - COMMON ANALYTICAL TENSIONS

START / CONCEPT: COMMON ANALYTICAL TENSIONS

|

v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · common · analytical · tensions

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for common analytical tensions.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of common analytical tensions.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise common analytical tensions beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Common Analytical Tensions is best understood through the exact constitutional and institutional rules governing common analytical tensions.

## SESSION 54 - INTEGRATED ANSWER-WRITING METHOD

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Integrated Answer-Writing Method explains the exact constitutional and institutional rules governing integrated answer-writing method.

**Technical definition:** Integrated Answer-Writing Method operates through the exact constitutional and institutional rules governing integrated answer-writing method, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Integrated Answer-Writing Method is best understood through the exact constitutional and institutional rules governing integrated answer-writing method.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- integrated
- writing
- method

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with integrated to explain the mechanism, and use writing for the decisive comparison or qualification.

### Visual 55 - Claim-evidence-analysis-qualification spine

CLAIM  
"Article 317 protects tenure through a differentiated removal process."  
|  
NAMED EVIDENCE  
clauses (1), (2), (3), (4)  
|  
ANALYSIS  
insulation prevents executive retaliation  
|  
QUALIFICATION  
appointment remains executive and clause (3) has direct grounds  
|  
VERDICT  
strong removal security, incomplete lifecycle independence

### CLOSING RECALL FLOW - INTEGRATED ANSWER-WRITING METHOD

START / CONCEPT: INTEGRATED ANSWER-WRITING METHOD  
|  
v  
EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · integrated · writing · method  
|  
v  
MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for integrated answer-writing method.  
|  
v  
CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of integrated answer-writing method.  
|  
v  
UPSC TRAP / ANSWER-USE: Do not generalise integrated answer-writing method beyond its exact office, Article, authority or legal effect.  
|  
v  
ANSWER-GRABBING FORMULATION: Integrated Answer-Writing Method is best understood through the exact constitutional and institutional rules governing integrated answer-writing method.

## SESSION 55 - THESIS SELECTOR

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Thesis Selector explains the exact constitutional and institutional rules governing thesis selector.

**Technical definition:** Thesis Selector operates through the exact constitutional and institutional rules governing thesis selector, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Thesis Selector is best understood through the exact constitutional and institutional rules governing thesis selector.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- thesis
- selector

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with thesis to explain the mechanism, and use selector for the decisive comparison or qualification.

| Demand              | Qualified thesis                                                                                                                               |
|---------------------|------------------------------------------------------------------------------------------------------------------------------------------------|
| independence        | PSC independence is strongest at removal and finance, but practical autonomy depends on appointment quality, staff, security and transparency. |
| advisory role       | Article 320 gives constitutional voice, not a veto; Article 323 makes departure politically accountable.                                       |
| SPSC federal design | State appointment plus Presidential removal anchors State recruitment while reducing immediate State retaliation.                              |
| selection review    | courts police legality and equality without becoming interview boards.                                                                         |
| exam integrity      | criminal deterrence under the 2024 Act must be joined to secure design, audit, communication and remedy.                                       |
| lateral recruitment | lawfulness depends on the post-specific rule, consultation exemption, reservation and transparent criteria, not on the label "lateral".        |

### CLOSING RECALL FLOW - THESIS SELECTOR

START / CONCEPT: THESIS SELECTOR

|

v

EXACT TERMS: Articles 315-323 • Public Service Commission • merit recruitment • thesis • selector

|

v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for thesis selector.

|

v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of thesis selector.

|

v

UPSC TRAP / ANSWER-USE: Do not generalise thesis selector beyond its exact office, Article, authority or legal effect.

|

v

ANSWER-GRABBING FORMULATION: Thesis Selector is best understood through the exact constitutional and institutional rules governing thesis selector.



## SESSION 56 - PRELIMS TRAP BOARD

### DEFINITION / WHAT THIS IS CALLED

**Plain-language definition:** Prelims Trap Board explains the exact constitutional and institutional rules governing prelims trap board.

**Technical definition:** Prelims Trap Board operates through the exact constitutional and institutional rules governing prelims trap board, distinguishing authority, procedure, safeguards and limits.

### ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Prelims Trap Board is best understood through the exact constitutional and institutional rules governing prelims trap board.

### MUST-WRITE KEYWORDS

- Articles 315-323
- Public Service Commission
- merit recruitment
- board

**How to use them:** Frame the answer through Articles 315-323; define Public Service Commission, connect merit recruitment with board to explain the mechanism, and close with the decisive comparison or qualification.

### Visual 56 - Close-option corrections

| Wrong statement                                            | Correction                                                                  |
|------------------------------------------------------------|-----------------------------------------------------------------------------|
| Joint PSC is purely extra-constitutional statutory body    | Constitution authorises it; parliamentary law activates it                  |
| Governor removes SPSC members                              | President removes                                                           |
| Governor suspends Joint Commission member                  | President suspends Joint; Governor suspends SPSC                            |
| all removal needs SC inquiry                               | only misbehaviour route; clause (3) grounds are direct Presidential grounds |
| half members must be IAS officers                          | near-half need ten years in government office                               |
| term runs from notification                                | six years from entering office                                              |
| no PSC member can hold any later PSC office                | Article 319 differentiates                                                  |
| UPSC advice is binding                                     | generally advisory/directory                                                |
| Article 320(4) abolishes reservation consultation entirely | exact manner-of-16(4)/335 exception                                         |
| every government post requires UPSC exam                   | role depends on rules and valid exemptions                                  |
| recommendation guarantees appointment                      | no infeasible right                                                         |
| courts cannot review selection                             | limited legality review is available                                        |
| Public Examinations Act excludes UPSC                      | UPSC is expressly in Schedule                                               |
| lateral entry automatically bypasses UPSC                  | post/mode/rule/exemption specific                                           |

### CLOSING RECALL FLOW - PRELIMS TRAP BOARD

START / CONCEPT: PRELIMS TRAP BOARD

|  
v

EXACT TERMS: Articles 315-323 · Public Service Commission · merit recruitment · board

|  
v

MECHANISM / ARGUMENT: Trace the relevant Article, appointing or consulting authority, procedural safeguard and accountability route for prelims trap board.

|  
v

CONSEQUENCE / CONTRAST: This determines merit protection, executive responsibility and the exam consequence of prelims trap board.

|  
v

UPSC TRAP / ANSWER-USE: Do not generalise prelims trap board beyond its exact office, Article, authority or legal effect.

|  
v

ANSWER-GRABBING FORMULATION: Prelims Trap Board is best understood through the exact constitutional and institutional rules governing prelims trap board.

## BASIC MCQS / REMEDIATION

### Original MCQ loop - strict continuous A -> B -> C -> D rotation

#### OM1. Article 315 baseline

Which statement is constitutionally correct?

A. There shall be a Public Service Commission for the Union and for each State, subject to Article 315. B. The Supreme Court determines the number of PSCs. C. Parliament must create every SPSC by ordinary law. D. One Commission must serve the Union and all States.

**Answer: A.**

**Explanation:** [FACT] Article 315(1) establishes the Union and State Commission baseline, subject to the cooperative alternatives in the Article.

#### OM2. Creating a Joint State PSC

A Joint State Public Service Commission is provided for when:

A. the Inter-State Council recommends it. B. relevant State legislatures pass resolutions and Parliament provides by law. C. the UPSC Chair approves a merger. D. two Governors issue a joint executive order.

**Answer: B.**

**Explanation:** [FACT] Article 315(2) requires State legislative resolutions and a parliamentary law.

#### OM3. Appointment to a Joint Commission

The Chair and members of a Joint State Public Service Commission are appointed by:

A. Parliament's presiding officers. B. the Chief Justice of India. C. the President. D. the Governors jointly.

**Answer: C.**

**Explanation:** [FACT] Article 316(1) places UPSC and Joint Commission appointments with the President.

#### OM4. SPSC removal

An SPSC member can constitutionally be removed by:

A. the Chief Minister after Cabinet advice. B. the State legislature by special majority. C. the Governor alone. D. the President under Article 317.

**Answer: D.**

**Explanation:** [FACT] Appointment is by the Governor, but removal authority for every PSC is the President.

#### OM5. Experience rule

Article 316 requires that:

A. as nearly as may be one-half of members have at least ten years of specified government office. B. exactly half be serving IAS officers. C. every member be a retired civil servant. D. the Chair have twenty years of judicial service.

**Answer: A.**

**Explanation:** [FACT] The near-half ten-year rule is the only universal composition qualification in the constitutional text.

#### OM6. UPSC tenure

A UPSC member ordinarily serves:

A. six years from notification regardless of age. B. six years from entering office or age 65, whichever is earlier. C. five years or age 62. D. until presidential pleasure ends.

**Answer: B.**

**Explanation:** [FACT] Article 316(2) uses entry upon office and the earlier of six years or age 65.

#### OM7. SPSC resignation

An SPSC member resigns by writing addressed to:

A. the President. B. the State legislature. C. the Governor. D. the Chief Minister.

**Answer: C.**

**Explanation:** [FACT] The resignation addressee differs from the removal authority.

#### OM8. Reappointment rule

On expiry of term, a PSC member:

A. may be reappointed if the executive records reasons. B. may always obtain a second identical term. C. is barred from every different PSC office. D. is ineligible for reappointment to that office, subject to Article 319 progression.

**Answer: D.**

**Explanation:** [FACT] Article 316(3) bars the same office; Article 319 separately states permitted later PSC offices.

#### OM9. Acting UPSC Chair

When the UPSC Chair cannot perform duties, the acting arrangement is made by:

A. the President from among other Commission members. B. the senior-most member automatically. C. Parliament by resolution. D. the Cabinet Secretary from the civil service.

**Answer: A.**

**Explanation:** [FACT] Article 316(1A) requires Presidential appointment; automatic seniority is not the text.

### OM10. Misbehaviour removal

Removal for misbehaviour requires:

A. a parliamentary impeachment vote. B. a Presidential reference and Supreme Court inquiry/report. C. a State Cabinet inquiry. D. a Commission majority.

**Answer: B.**

**Explanation:** [FACT] Article 317(1), not the judicial-removal address procedure, controls.

### OM11. Direct clause (3) ground

Which is a direct Presidential removal ground under Article 317(3)?

A. an adverse annual report. B. refusal to accept an executive recommendation. C. infirmity of mind or body making the member unfit. D. disagreement with government policy.

**Answer: C.**

**Explanation:** [FACT] Insolvency, paid outside employment and qualifying infirmity are clause (3) grounds.

### OM12. Joint Commission suspension

After a Supreme Court reference, a Joint Commission member may be suspended by:

A. Parliament. B. the Governor chosen by rotation. C. any served State's Governor. D. the President.

**Answer: D.**

**Explanation:** [FACT] Article 317(2) gives the President suspension power for Union and Joint Commissions.

### OM13. Article 318 safeguard

Which condition is constitutionally protected?

A. A member's service conditions cannot be varied to the member's disadvantage after appointment. B. Staff conditions can never be altered. C. Commission strength is permanently frozen. D. Every member receives a judicial salary.

**Answer: A.**

**Explanation:** [FACT] The Article 318 proviso expressly protects members against disadvantageous variation.

### OM14. Former SPSC Chair

A former SPSC Chair may be eligible to become:

A. an SPSC member in the same State. B. a member or Chair of the UPSC, or Chair of another SPSC. C. any Union Secretary. D. any public-sector chief executive.

**Answer: B.**

**Explanation:** [FACT] Article 319(b) permits the specified PSC offices and bars other government employment.

### OM15. Former UPSC member

A former UPSC member other than the Chair may be eligible as:

A. the same UPSC member for a second term. B. any government adviser. C. UPSC Chair or Chair of an SPSC. D. any SPSC member.

**Answer: C.**

**Explanation:** [FACT] Article 319(c) does not permit ordinary SPSC membership.

### OM16. Former UPSC Chair

On ceasing office, the UPSC Chair is:

A. eligible to become a Union Secretary. B. eligible to chair any SPSC. C. eligible for any State government employment. D. ineligible for further employment under Union or State government.

**Answer: D.**

**Explanation:** [FACT] Article 319(b) is the strictest of the four post-office clauses.

### OM17. Examination duty

Article 320(1) makes it the duty of PSCs to:

A. conduct examinations for appointments to the respective Union/State services. B. appoint every selected candidate. C. frame all service laws. D. adjudicate all service disputes.

**Answer: A.**

**Explanation:** [FACT] Examination is a core duty; appointment and adjudication remain elsewhere.

### OM18. Joint recruitment scheme

Under Article 320(2), UPSC assists:

A. one State whenever its SPSC is vacant. B. two or more requesting States with joint recruitment for specially qualified services. C. Parliament in recruiting judges. D. private employers seeking a common test.

**Answer: B.**

**Explanation:** [FACT] This is joint-scheme assistance, not a Joint Commission.

### OM19. Consultation subject

Which matter is expressly within Article 320(3)?

A. deciding an election petition. B. fixing the Finance Commission formula. C. a qualifying official-duty legal-defence cost claim. D. delimitation of constituencies.

**Answer: C.**

**Explanation:** [FACT] Article 320(3)(a) is a frequently overlooked consultation subject.

### OM20. Article 320(4)

Article 320(4) means that PSC consultation is not required regarding:

A. every application of Article 16. B. all promotions involving reservation. C. every appointment of an SC/ST candidate. D. the manner of making Article 16(4) provision or giving effect to Article 335.

**Answer: D.**

**Explanation:** [FACT] The exact textual scope must replace the loose statement that "reservation is outside UPSC".

### OM21. Exemption regulations

Regulations under the proviso to Article 320(3):

A. must be laid for at least fourteen days before the relevant legislature and are modifiable. B. permanently amend Article 320. C. require Supreme Court approval. D. are secret executive instructions.

**Answer: A.**

**Explanation:** [FACT] Article 320(5) creates legislative scrutiny of delegated exemptions.

## OM22. Nature of advice

The safest statement is:

A. government may ignore the Commission without accountability. B. Article 320 consultation is generally directory; advice is not a legal veto. C. non-consultation automatically voids every action. D. PSC advice always binds the government.

**Answer: B.**

**Explanation:** [FACT] *Manbodhan Lal* establishes directory consultation while recognising its constitutional importance.

## OM23. Article 321

Additional PSC functions concerning local authorities or statutory bodies may be conferred by:

A. an annual report. B. a Commission resolution alone. C. an Act of Parliament or the competent State legislature. D. a Supreme Court practice direction.

**Answer: C.**

**Explanation:** [FACT] Article 321 supplies the legislative-extension route.

## OM24. Charged expenditure

Under Article 322, SPSC expenses are charged on:

A. a Commission fee fund. B. the Consolidated Fund of India. C. the Public Account of the State. D. the Consolidated Fund of the State.

**Answer: D.**

**Explanation:** [FACT] Charged expenditure is not submitted to vote, though it may be discussed.

## OM25. UPSC report

Where UPSC advice is not accepted, Article 323 requires:

A. a memorandum explaining cases and reasons to accompany the report laid before Parliament. B. a national referendum. C. the President to reverse the government. D. automatic judicial invalidation.

**Answer: A.**

**Explanation:** [FACT] Reporting and reasons are the constitutional accountability substitute for binding advice.

## OM26. Joint Commission reporting

A Joint Commission reports:

A. to the Inter-State Council. B. to each served State's Governor on work relating to that State. C. only to Parliament. D. only to the President.

**Answer: B.**

**Explanation:** [FACT] Each Governor lays the relevant report and non-acceptance memorandum before that State legislature.

## OM27. UPSC and DoPT

Which allocation is correct?

A. CAT appoints civil servants. B. DoPT conducts every UPSC examination. C. UPSC recruits/advises; government/DoPT owns much rule, cadre and personnel management. D. UPSC manages all cadres and training.

**Answer: C.**

**Explanation:** [FACT] The constitutional Commission is not the entire personnel administration.

### OM28. Select-list right

*Shankarsan Dash* establishes that:

A. government discretion is immune from equality review. B. selection creates property in the post. C. every notified vacancy must be filled. D. inclusion in a select list creates no indefeasible appointment right, though action cannot be arbitrary.

**Answer: D.**

**Explanation:** [FACT] Fair consideration and non-arbitrariness survive without an automatic appointment right.

### OM29. Judicial review of selection

Courts may properly interfere where:

A. statutory rules are seriously violated or mala fides/bias is shown. B. the court wants to design a new service. C. interview answers could have been marked differently. D. a judge personally prefers another candidate.

**Answer: A.**

**Explanation:** [FACT] *M.V. Thimmaiah* protects expert merits while preserving review for legal defects.

### OM30. Manbodhan Lal

The case is chiefly associated with:

A. creation of a Joint Commission. B. Article 320 consultation being directory rather than mandatory. C. charged expenditure. D. the age ceiling of SPSC members.

**Answer: B.**

**Explanation:** [FACT] The decision arose in the disciplinary-consultation context.

### OM31. Mid-process criteria

Which principle follows from *K. Manjusree* and *Tej Prakash Pathak*?

A. criteria may always change before results. B. candidates control recruitment rules. C. eligibility/selection criteria cannot be altered mid-process unless lawful rules permit a non-arbitrary course. D. every clarification is illegal.

**Answer: C.**

**Explanation:** [FACT] The doctrine is anchored in equal, predictable public employment under Articles 14 and 16.

### OM32. Public Examinations Act coverage

The 2024 Act's Schedule:

A. excludes constitutional bodies. B. covers UPSC only after a separate State notification. C. covers only school boards. D. expressly includes examinations conducted by UPSC.

**Answer: D.**

**Explanation:** [CURRENT] UPSC is item 1 in the Schedule.

### OM33. Monitoring rule

The Public Examinations Rules, 2024 require:

A. each public examination authority to establish an implementation-monitoring mechanism. B. all exams to use one private vendor. C. abolition of offline examinations. D. the Supreme Court to audit every examination.

**Answer: A.**

**Explanation:** [CURRENT] Rule 9 supplies the monitoring duty.

### OM34. 15 March 2024 consultation amendment

The precise statement is:

A. it applies to every SPSC. B. it exempts specified Group A/B posts up to level 13A filled through named modes. C. it abolishes Article 320. D. it exempts every lateral appointment.

**Answer: B.**

**Explanation:** [CURRENT] Post level and mode are essential; "lateral entry" is not the regulation's universal label.

### OM35. Tribunal boundary

Which institution principally adjudicates covered Union recruitment/service disputes at first instance?

A. Finance Commission. B. Election Commission. C. Central Administrative Tribunal under its statutory jurisdiction. D. UPSC.

**Answer: C.**

**Explanation:** [FACT] Commission and tribunal functions are institutionally distinct.

### OM36. Independence assessment

Which conclusion is strongest?

A. charged expenditure alone guarantees integrity. B. non-binding advice means no independence exists. C. Presidential removal makes appointments irrelevant. D. appointment quality, tenure, finance, staff, secure process, reporting and review interact.

**Answer: D.**

**Explanation:** [ANALYSIS] Independence is systemic, not a one-clause label.

### Remedial MCQs - strict continuation A -> C -> B -> D rotation

#### RM1. Joint Commission status

The best description of a Joint State PSC is:

A. constitutionally contemplated and brought into operation by parliamentary law after State resolutions. B. identical to UPSC assistance under Article 315(4). C. automatically created when two Governors agree. D. purely executive and extra-constitutional.

**Answer: A.**

**Explanation:** [FACT] This formulation preserves both constitutional source and statutory creating instrument.

#### RM2. Suspension trap

After an Article 317 reference concerning an SPSC member, suspension may be ordered by:

A. the SPSC Chair. B. the Governor. C. the President only. D. the State legislature.

**Answer: B.**

**Explanation:** [FACT] Final removal remains with the President; suspension authority is differentiated.

#### RM3. Contract interest

A PSC member's prohibited interest in a government contract is:

A. a direct insolvency ground. B. irrelevant after disclosure. C. deemed misbehaviour subject to the Article 317(1) route, with the company-membership exception. D. decided finally by the Commission.

**Answer: C.**

**Explanation:** [FACT] Article 317(4) supplies the deemed-misbehaviour rule.



#### RM4. Same-office trap

Article 316(3) means:

A. no former member may ever serve another PSC. B. Article 319 is redundant. C. a second term is allowed after a gap. D. reappointment to the same office is barred, while exact different-office eligibility is separately tested.

**Answer: D.**

**Explanation:** [FACT] The two Articles must be read together.

#### RM5. Advice-accountability link

If government rejects PSC advice, the constitutional model relies especially on:

A. reasons and the Article 323 report/memorandum route. B. Commission veto. C. dismissal of the minister. D. automatic contempt.

**Answer: A.**

**Explanation:** [ANALYSIS] Public reason and legislative scrutiny give advisory power consequence.

#### RM6. Reservation nuance

Article 320(4):

A. excludes every SC/ST candidate from Commission recruitment. B. removes the requirement of PSC consultation on the specified manner of Article 16(4)/335 implementation. C. prohibits reservation. D. permits PSC to ignore a roster.

**Answer: B.**

**Explanation:** [FACT] The exception concerns required consultation, not substantive equality law.

#### RM7. Lateral-entry trap

The correct method is to:

A. treat media terminology as the legal rule. B. assume every lateral post is UPSC-exempt. C. check post, level, recruitment rule, mode, consultation regulation, reservation and transparency. D. assume every contract post is unconstitutional.

**Answer: C.**

**Explanation:** [ANALYSIS] Post-specific legal analysis prevents overstatement in either direction.

#### RM8. Appointment-right trap

A selected candidate:

A. can compel filling of every advertised vacancy. B. cannot be rejected for discovered ineligibility. C. owns the vacancy. D. has no automatic appointment right but is protected against arbitrary State action.

**Answer: D.**

**Explanation:** [FACT] This is the calibrated *Shankarsan Dash* rule.

#### RM9. Court's role

In reviewing PSC selection, a court should principally:

A. test legality, fairness, bias and rule compliance. B. fill vacancies directly whenever possible. C. substitute its preferred scoring system. D. conduct a new viva voce.

**Answer: A.**

**Explanation:** [FACT] Review is constitutional supervision, not merit appeal.

## RM10. Public-examination law

The 2024 Act:

- A. replaces Articles 315-323. B. adds anti-unfair-means offences and controls to the existing recruitment framework. C. governs only private coaching tests. D. guarantees every exam will be leak-proof.

**Answer: B.**

**Explanation:** [CURRENT] It supplements, rather than constitutionalises or perfects, exam administration.

## RM11. SPSC reform

Which is a calibrated integrity reform?

- A. executive power to alter criteria after the exam. B. removal of judicial review. C. timely criteria-based appointments, conflict controls, secure systems and reasoned grievance handling. D. permanent secrecy over results.

**Answer: C.**

**Explanation:** [ANALYSIS] Reform must strengthen capacity and accountability without executive capture.

## RM12. Examiner-grade method

The best paragraph sequence is:

- A. definition -> copied list -> absolute claim. B. slogan -> allegation -> prediction. C. case name -> unrelated statistic -> wish. D. claim -> named evidence -> analysis -> qualification.

**Answer: D.**

**Explanation:** [ANALYSIS] This pattern demonstrates control, relevance and balance.

# PYQS AND ANSWER PRACTICE

## Audited PYQ coverage control

[FACT] This H2 deliberately begins the practice material so that `markdown_learning_pdf.py --mode workbook` extracts the complete solved workbook and stops before the final consolidated register notes.

[FACT] The recent local routing ledgers and integration audits for **2018-2023, 2024-2025 and 2026** were searched precisely for Public Service Commission, Article 315, Article 320, SPSC and Joint State Public Service Commission.

[LIMIT] **No direct standalone UPSC Prelims or GS-II Mains PYQ on the UPSC/SPSC constitutional architecture was verified in those routed ledgers.** Therefore, this package does not manufacture an official question, year, wording or key.

[LIMIT] Adjacent verified questions on civil-service reform, ethos of civil services, administrative tribunals, district-judge recruitment and bank-chair selection remain with their audited Governance, Public Services, Judiciary, Tribunal or Economy owners. They are not relabelled as PSC PYQs merely because recruitment is an adjacent concept.

## Visual 57 - PYQ audit outcome

| Ledger window                        | Exact PSC route found?     | Package action               |
|--------------------------------------|----------------------------|------------------------------|
| 2018-2023 Prelims/Mains              | no direct standalone route | state absence; do not invent |
| 2024-2025 Prelims/Mains              | no direct standalone route | state absence; do not invent |
| 2026 ledgers/audit                   | no routed PSC question     | state absence; do not invent |
| adjacent recruitment/service demands | yes, but owned elsewhere   | cross-link, not duplicate    |

## Original solved Mains practice

### M1. Article 317 does not provide one uniform removal process for every allegation against a Public Service Commission member. Explain. (10 marks, 150 words)

#### Model solution

**Thesis:** [FACT] Article 317 centralises final removal in the President but differentiates misbehaviour from three direct constitutional grounds; [ANALYSIS] that distinction combines tenure security with workable incapacity and conflict controls.

**Misbehaviour:** [FACT] Under clause (1), the President refers the allegation to the Supreme Court, which conducts an inquiry under the Article 145 procedure and reports whether the member ought to be removed. [FACT] Clause (4) deems prohibited interest in a government contract to be misbehaviour.

**Direct grounds:** [FACT] Clause (3) allows Presidential removal for adjudged insolvency, paid employment outside office, or unfitness due to infirmity of mind or body without using the separate clause (1) inquiry route.

**Suspension:** [FACT] Once reference is made, the President may suspend a UPSC/Joint Commission member, while the Governor may suspend an SPSC member, until the President acts on the Court's report.

**Qualification:** [LIMIT] The Governor never finally removes an SPSC member, and Parliament's judicial-address procedure is inapplicable.

**Verdict:** Article 317 protects against retaliatory removal without making the office incapable of responding to objective disqualification or incapacity.

**Outstanding-answer test:** It names all four clauses, distinguishes removal from suspension and avoids importing "impeachment".

**How to improve / compress:** Use a three-branch diagram-misbehaviour inquiry, direct clause (3) grounds and suspension-and name the different SPSC suspending authority; omit general independence discussion in a 10-marker.

### M2. Public Service Commission advice is non-binding, yet constitutionally consequential. Comment. (10 marks, 150 words)

#### Model solution

**Thesis:** [FACT] Article 320 creates a constitutional consultation voice rather than a veto; [ANALYSIS] its consequence arises from expertise, convention and public accountability.

**Scope:** [FACT] Consultation covers recruitment methods, appointment/promotion/transfer principles and suitability, disciplinary matters, official-duty legal-cost claims and injury pensions. This gives the Commission structured access before important personnel decisions.

**Legal limit:** [FACT] *State of U.P. v. Manbodhan Lal Srivastava* held Article 320(3) directory, so non-consultation does not automatically invalidate executive action. Valid regulations may also specify consultation exceptions.

**Accountability:** [FACT] Article 323 requires annual reports and memoranda explaining cases and reasons where advice was not accepted. [ANALYSIS] Rejection thus becomes capable of legislative and public scrutiny.

**Qualification:** [LIMIT] Directory does not mean dispensable at will; arbitrariness, mala fides and rule violations remain reviewable.

**Verdict:** The Commission influences by reason and disclosure, not command-a soft legal power strengthened by hard reporting duties.

**Outstanding-answer test:** It links Articles 320 and 323 and states *Manbodhan Lal* without saying advice is meaningless.

**How to improve / compress:** Define directory consultation through *Manbodhan Lal*, then connect Article 323 reporting to accountability; compress the exceptions list to one constitutional and one regulatory example.

**M3. A Joint State Public Service Commission is neither purely statutory nor automatically created by the Constitution. Clarify. (10 marks, 150 words)**

**Model solution**

**Thesis:** [FACT] Article 315(2) supplies the constitutional design, while a parliamentary law after State legislative resolutions supplies the operational creating instrument.

**Constitutional foundation:** Two or more States may agree to a common Commission. Each relevant House-or each House in a bicameral State-must pass the resolution contemplated by Article 315(2).

**Statutory activation:** Parliament may then by law provide for appointment and incidental/consequential matters. [FACT] The President appoints its Chair/members under Article 316, regulates it under Article 318 and may suspend its member after an Article 317 reference.

**Distinctions:** [FACT] It differs from UPSC serving a State under Article 315(4) and from UPSC assistance for a joint recruitment scheme under Article 320(2).

**Qualification:** [LIMIT] Calling it merely “statutory” can hide its constitutional status; calling it self-executing ignores the required law.

**Verdict:** It is best described as a constitutionally authorised common Commission instantiated by parliamentary statute through State consent.

**Outstanding-answer test:** It separates source, trigger, law, appointing authority and two neighbouring devices.

**How to improve / compress:** State the constitutional enabling route and statutory creation route separately; finish with appointment, term, finance and reporting in one compact comparison.

**M4. Examine the constitutional safeguards and practical limits of UPSC/SPSC independence. (15 marks, 250 words)**

**Model solution**

**Thesis:** [ANALYSIS] PSC independence is strongest at removal and finance but incomplete across the institutional lifecycle; appointment quality, staff, technology and compliance conventions determine whether constitutional insulation becomes practical autonomy.

**Constitutional safeguards**

1. [FACT] Article 315 creates the Commissions directly and prevents ordinary executive abolition of their core.
2. [FACT] Article 316 fixes six-year/age-limited tenure, reducing pleasure-based insecurity.
3. [FACT] Article 317 reserves final removal to the President and subjects misbehaviour to Supreme Court inquiry.
4. [FACT] Article 318 bars disadvantageous variation of member service conditions.
5. [FACT] Article 319 narrows post-office government employment, reducing favour-seeking.
6. [FACT] Article 322 charges UPSC/SPSC expenditure on the relevant Consolidated Fund.
7. [FACT] Article 323 requires reporting and reasons for rejected advice.

**Practical limits**

- [FACT] President/Governor appoint members without an adopted constitutional collegium.
- [FACT] Article 320 advice is generally non-binding after *Manbodhan Lal*.
- [ANALYSIS] Executive control over staff, technology procurement and timely vacancies can weaken an otherwise protected body.
- [ANALYSIS] SPSC quality may vary with local political networks, secretariat capacity and examination-security systems.

**Counterpoint:** [ANALYSIS] Binding advice on every matter could transfer democratic personnel responsibility to an unelected commission.

**Reforms:** publish appointment criteria and conflicts, fill vacancies predictably, strengthen rule-based staff and cyber capacity, improve speaking grievance decisions, and ensure legislative committees examine Article 323 memoranda.

**Qualification:** [LIMIT] No speculative collegium should be presented as current law.

**Verdict:** The Constitution protects the Commission from dismissal; governance reform must protect it from dependence, delay and distrust.

**Outstanding-answer test:** It uses at least five exact Articles, presents both institutional case and democratic limit, and offers implementable reforms.

**How to improve / compress:** Compare UPSC, SPSC and Joint Commission on identical axes-creation, appointment, age, removal, finance and report-to prevent federal-design omissions.

### **M5. Courts review Public Service Commission selections, but they do not sit as appellate selection boards. Analyse. (15 marks, 250 words)**

#### **Model solution**

**Thesis:** [FACT] Judicial review protects Articles 14 and 16, statutory rules and procedural fairness; [ANALYSIS] judicial restraint simultaneously protects expert comparative assessment.

#### **Reviewable defects**

- [FACT] *Ashok Kumar Yadav* demonstrates that PSC selection remains reviewable for bias and arbitrary interview design.
- [FACT] *K. Manjusree* invalidated a minimum interview benchmark introduced after the process.
- [CURRENT] *Tej Prakash Pathak*, 2024 INSC 847, Constitution Bench, reaffirms stability of eligibility/selection rules unless the governing framework permits a lawful, non-arbitrary change.
- [FACT] Mala fides, unequal treatment, ineligible decision-makers and serious statutory-rule violations remain review grounds.

#### **Restraint**

[FACT] *M.V. Thimmaiah v. UPSC* states that courts ordinarily do not act as appellate authorities over expert recommendations; review is exceptional for mala fides or serious rule breach.

#### **Appointment boundary**

[FACT] *Shankarsan Dash* denies an indefeasible appointment right merely from select-list inclusion. Yet government cannot arbitrarily refuse appointment or selectively apply its decision.

**Institutional reason:** [ANALYSIS] Judges are equipped to decide legality, not to reconstruct specialist scoring, interviews and service suitability.

**Qualification:** [LIMIT] "Expert opinion" cannot shield conflict of interest, undisclosed criteria or discrimination.

**Verdict:** The correct line is **merit deference with legality control**: courts do not choose candidates, but they ensure the State chooses by known, equal and lawful rules.

**Outstanding-answer test:** It gives four named cases with propositions and distinguishes selection, recommendation and appointment.

**How to improve / compress:** Build the answer around removal, service-condition protection, charged expenditure and Article 319; add one residual weakness rather than listing generic reform slogans.

### **M6. Examination integrity requires more than criminal punishment. Discuss with reference to the Public Examinations framework and PSC governance. (15 marks, 250 words)**

#### **Model solution**

**Thesis:** [CURRENT] The Public Examinations Act and Rules, 2024 add a strong anti-unfair-means framework; [ANALYSIS] deterrence succeeds only when joined to prevention, detection, transparent remedy and institutional capacity.

#### **Legal layer**

[FACT] The Act's Schedule expressly covers UPSC examinations. Section 3 includes leakage, unauthorised access/assistance, answer-sheet and assessment tampering, security/network manipulation, fake sites, fake exams

and fake offer letters. Offences are cognizable, non-bailable and non-compoundable; service-provider and organised-crime liability addresses systemic wrongdoing.

### Preventive layer

[CURRENT] Rule 5 contemplates CBT standards for centres, nodes, servers, networks, platforms, readiness audits, biometrics, security, question loading, invigilation and post-exam checks. Rule 9 requires implementation monitoring.

### Governance layer

- segment question access and retain audit logs;
- independently test high-risk digital systems and vendors;
- publish stable criteria, calendars and prompt reasons for delay;
- provide accessible grievance and answer-key/result representation channels;
- prepare continuity/re-examination protocols that protect innocent candidates.

**Qualification:** [LIMIT] Maximum secrecy can conceal weak governance; maximum disclosure can reveal attack surfaces. Privacy, disability accommodation and natural justice must remain intact.

**Verdict:** Criminal law punishes the breach; trustworthy PSC design prevents it, detects it early and gives candidates a lawful remedy.

**Outstanding-answer test:** It names the Act's UPSC Schedule, verified Rules and a full prevent-detect-report-remedy cycle.

**How to improve / compress:** Separate examination duty, consultation catalogue and lawful exemptions; conclude that executive responsibility survives but rejection must face reporting scrutiny.

## M7. "The SPSC is State-rooted but Union-insulated." Evaluate this federal design and suggest reforms. (20 marks, 300 words)

### Model solution

**Thesis:** [FACT] The Governor appoints SPSC members and receives their annual report, while the President alone removes them; [ANALYSIS] this asymmetry combines State recruitment ownership with protection from immediate State executive retaliation.

#### State-rooted elements

1. [FACT] Article 315 provides an SPSC for each State.
2. [FACT] The Governor appoints the Chair and members under Article 316.
3. [FACT] The Governor determines membership/staff conditions by regulations under Article 318.
4. [FACT] The SPSC recruits for State services and reports to the Governor under Article 323.
5. [FACT] The State legislature receives the report and non-acceptance memorandum.

#### Union-insulated elements

1. [FACT] Only the President removes an SPSC member under Article 317.
2. [FACT] Misbehaviour requires Supreme Court inquiry.
3. [FACT] The State government cannot use removal simply because advice is inconvenient.
4. [FACT] The constitutional age/tenure, service-condition and post-office rules limit local executive control.

#### Federal flexibility

[FACT] States may seek a Joint Commission through resolutions and parliamentary law, use UPSC assistance under Article 315(4), or request joint-scheme help under Article 320(2).

#### Problems

[ANALYSIS] Executive appointment dominance, vacancies, local conflicts, weak vendor/security capacity, shifting criteria and poor grievance systems can defeat formal insulation. Presidential removal is a last-resort safeguard, not daily quality assurance.

#### Reforms

- publish qualification, integrity and conflict criteria for appointments;
- create predictable appointment/vacancy calendars;
- professionalise permanent secretariats and digital-security cells;
- adopt national-conference standards while preserving State adaptation;
- publish reasons, marks/cut-offs and grievance outcomes within law;
- strengthen legislative committee scrutiny of Article 323 reports.

**Qualification:** [LIMIT] A Union-controlled appointment system would over-correct the State problem and weaken federal ownership; no adopted collegium should be assumed.

**Verdict:** The design wisely separates State connection from State removal control. Its unfinished task is to add transparent appointment and operational capacity to constitutional tenure security.

**Outstanding-answer test:** It evaluates both federal poles, uses Articles 315-323 and rejects both centralisation and local capture.

**How to improve / compress:** Use bias, stable criteria, no automatic appointment right and limited merits review as four case-law rules; attach each case only to its precise proposition.

## **M8. Critically examine whether lateral recruitment is inconsistent with the constitutional role of the UPSC and the equality code in public employment. (20 marks, 300 words)**

### **Model solution**

**Thesis:** [FACT] Lateral recruitment is not per se unconstitutional and UPSC has no monopoly over every post; [ANALYSIS] legality depends on post-specific recruitment rules, consultation requirements, Articles 14 and 16, reservation, transparent criteria and non-arbitrary selection.

#### **Why it may be legitimate**

- [FACT] Article 309 permits recruitment and service conditions to be regulated by law/rules.
- [FACT] Article 320 envisages examinations and consultation but also constitutionally permits exemption regulations.
- [ANALYSIS] Specialist, time-bound or scarce-skill posts may justify direct selection, deputation or contract where rules authorise it.
- [ANALYSIS] An independent expert/UPSC role can strengthen credibility even when a competitive generalist examination is unsuitable.

#### **Constitutional concerns**

- bypassing a valid consultation requirement;
- vague or tailored eligibility criteria;
- changing benchmarks after applications;
- inadequate advertisement and conflict disclosure;
- arbitrary shortlisting/interview;
- evasion rather than lawful application of reservation/equal-opportunity rules;
- repeated temporary hiring that replaces rule-bound career structures.

#### **Current regulatory nuance**

[CURRENT] G.S.R. 203(E), 15 March 2024, exempts specified Group A/B posts up to level 13A filled through named deputation/re-employment, short-term-contract, absorption or composite modes. [LIMIT] It is not a blanket "lateral entry exemption"; higher/different posts require their own legal analysis.

#### **Judicial control**

[FACT] *K. Manjusree* and *Tej Prakash Pathak* require stable criteria; *M.V. Thimmaiah* supports merit deference subject to legality; *Shankarsan Dash* denies an automatic appointment right but not equality review.

#### **Reform design**



Publish a post-wise skills gap, recruitment rule and reservation position; use wide notice; pre-declare scoring and conflicts; include independent expertise; record reasons; cap tenure with evaluation; publish aggregate outcomes; preserve review.

**Qualification:** [LIMIT] Neither “all expertise lies outside government” nor “only career examination creates merit” is defensible.

**Verdict:** Lateral recruitment can supplement the constitutional merit system only when it is more transparent and rule-bound than patronage-not a label used to escape it.

**Outstanding-answer test:** It avoids a yes/no slogan, cites Articles 309/320, the exact 2024 regulation, reservation, four cases and a workable design.

**How to improve / compress:** Give actor-specific reforms for Union Commission, State Commissions and examination providers; keep current officeholders/statistics out unless date-controlled.

## OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

### UPSC & State Public Service Commissions (Articles 315-323) - ADVANCED / COMPLETE

**Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II **Grounded in:** Indian Polity by M. Laxmikant, Ch. 43-44 (direct check of the local Sixth Revised Edition PDF). **FACT:** = from source book · **ANALYSIS:** = inference / case law · **CURRENT:** = current affairs. *Companion:* basic/UPSC-and-SPSC.md.

#### PART A - UPSC (Art 315-323, Part XIV) □

**FACT:** The **central recruiting agency** - an **independent constitutional body** (directly created by the Constitution). Governs composition, appointment, removal, independence, powers & functions of the UPSC and SPSCs.

##### Composition

| Point                 | Detail                                                                                                     |
|-----------------------|------------------------------------------------------------------------------------------------------------|
| FACT: Members         | <b>Chairman + members</b> appointed by the <b>President</b> ; strength <b>not fixed</b> (usually 9-11)     |
| FACT: Qualification   | None specified - but <b>½ the members</b> must have held office <b>≥ 10 years</b> under the Centre/a state |
| FACT: Term            | <b>6 years or 65 years</b> , whichever earlier                                                             |
| FACT: Acting chairman | President may appoint a member as acting chairman (15th Amdt 1963)                                         |

##### Removal (Art 317) □

**FACT:** President removes the chairman/member if: **(a) adjudged insolvent, (b) engages in paid employment outside office, (c) unfit due to infirmity of mind/body**. For **misbehaviour**, the President **refers the matter to the Supreme Court** - the SC's advice (after enquiry) is **binding**. (President may **suspend** during the enquiry.)

##### Independence

- **FACT: Security of tenure** (removed only in the constitutional manner).
- **FACT:** Service conditions **can't be varied to disadvantage** after appointment.
- **FACT:** Expenses (salaries/pensions) **charged on the Consolidated Fund of India** (not voted).
- **FACT: UPSC Chairman:** no further employment under Union/State.
- **FACT: SPSC Chairman:** may become UPSC Chairman/member or Chairman of another SPSC.
- **FACT: UPSC member:** may become UPSC Chairman or an SPSC Chairman.
- **FACT: SPSC member:** may become UPSC Chairman/member or Chairman of the same/another SPSC.
- **FACT: No re-appointment** to the same office (no second term).
- **ANALYSIS: A.R. Kidwai case (1979):** an ex-UPSC chairman appointed **Governor** was upheld - Governor is a **constitutional office**, not "employment under government."



## Functions

FACT: Conducts exams for **All-India / Central services & UT services**; advises on **recruitment methods, appointments, promotions, transfers, disciplinary matters, legal-expense/pension claims**. Presents an **annual report** to the President -> laid before Parliament with a memo explaining rejected advice.

- ANALYSIS: **Advisory & directory, NOT mandatory**: the SC held that failure to consult the UPSC does **not invalidate**

a government decision, and UPSC selection confers **no right to the post**.

## Limitations (UPSC NOT consulted on) FACT:

Reservations for backward classes; SC/ST claims; selections for **tribunal/commission chairmanships, top diplomatic posts, bulk of Group C & D**; temporary appointments  $\leq 1$  year. The President may exclude posts by **regulations laid before Parliament for 14 days**.

## Role

FACT: **"Watch-dog of the merit system"** - but only a **recruiting agency**. Cadre management, pay, training -> **Department of Personnel & Training (DoPT)**, the central *personnel* agency. ANALYSIS: On disciplinary matters it has an **edge over the CVC** (UPSC is constitutional; CVC statutory since 2003).

## PART B - STATE PSC (SPSC) □

| Point                             | UPSC                          | SPSC                                                                        |
|-----------------------------------|-------------------------------|-----------------------------------------------------------------------------|
| FACT: Created by                  | Constitution                  | Constitution                                                                |
| FACT: Appointed by                | <b>President</b>              | <b>Governor</b>                                                             |
| FACT: Removed by                  | <b>President</b>              | <b>President</b> (NOT the Governor!)                                        |
| FACT: Member's onward eligibility | UPSC chairman / SPSC chairman | UPSC member/chairman, <b>or</b> chairman of the <b>same or another SPSC</b> |
| FACT: ½-members-10-yr rule        | Yes                           | Yes                                                                         |
| FACT: Term                        | 6 yr / 65 yr                  | 6 yr / <b>62 yr</b>                                                         |

□ **Key trap**: An SPSC member/chairman is **appointed by the Governor but removed only by the President** - a state functionary removable only by the Union.

## PART C - JOINT SPSC (JSPSC) □

FACT: For **two or more states**. Unlike UPSC/SPSC (constitutional), a **JSPSC is created by an Act of Parliament** (on the request of the state legislatures). Its **chairman & members are appointed by the President** and removed by the President. Term: 6 yr / 62 yr.

- FACT: **UPSC can also serve a state's needs** - on the **Governor's request** with the **President's approval**.

## UPSC Traps

- WRONG: SPSC members are removed by the Governor -> removed **only by the President**.
- WRONG: UPSC advice is binding on the government -> **advisory/directory**, not binding.
- WRONG: UPSC handles pay, cadre & training -> that's the **DoPT**; UPSC only **recruits**.
- WRONG: A UPSC member can take any government job after his term -> only **UPSC/SPSC chairmanship**.
- WRONG: JSPSC is a constitutional body -> created by an **Act of Parliament** (statutory).
- WRONG: UPSC is consulted on reservations/SC-ST claims -> these are **outside** its purview.
- WRONG: SPSC retirement age is 65 -> **62** for SPSC (65 for UPSC).

## CURRENT: CA hooks

- CURRENT: ANALYSIS: **UPSC/CSE reform debate** - attempts limit/age relaxation demands; the **"UDAAN"/one-nation-one-exam**

and lateral-entry-into-bureaucracy controversy.

- CURRENT: ANALYSIS: **Puja Khedkar fake-disability/OBC-certificate case (2024)** -> UPSC integrity, candidate verification, and

the "watch-dog of merit" role in focus.

- CURRENT: ANALYSIS: Vacancies & delays in several **State PSCs**; demand for greater autonomy and transparency.

### Mains angles

- "The UPSC is only as strong as the merit system it guards." Examine its role and limitations.
- SPSC members appointed by the Governor but removable only by the President - assess this federal design.
- Lateral entry vs UPSC recruitment: does it dilute or strengthen the merit system?

## CONSOLIDATED REGISTER NOTES

### Constitutional purpose and institutional lineage

- [FACT] Public Service Commissions convert recruitment from executive patronage toward rule-based, equal and expert selection.
- [FACT] Institutional lineage: competitive turn after 1853 -> 1919 Act provision -> Lee Commission -> first PSC in 1926 -> Federal/Provincial/Joint design under 1935 Act -> Articles 315-323 in 1950.
- [ANALYSIS] The constitutional settlement is **insulated advice plus democratic executive responsibility**, not a Commission monopoly over the personnel state.
- [LIMIT] Competitive examination is one merit tool; competence must coexist with equality, reservation, accessibility and post-specific suitability.

### Visual 58 - Article 315-323 rapid spine

| Article | Recall phrase                                                        |
|---------|----------------------------------------------------------------------|
| 315     | Union, State, Joint and UPSC-for-State                               |
| 316     | appointment, near-half ten-year rule, acting Chair, term/resignation |
| 317     | removal, suspension and contract-interest misbehaviour               |
| 318     | member/staff regulations; no adverse member variation                |
| 319     | four differentiated post-office restrictions                         |
| 320     | exams, joint schemes, consultation, exceptions and laying            |
| 321     | legislative extension                                                |
| 322     | charged expenses                                                     |
| 323     | reports, memoranda and legislatures                                  |

### The three Commission forms

- [FACT] UPSC and each SPSC exist directly under Article 315(1).
- [FACT] Joint Commission: State legislative resolutions -> parliamentary law -> President appoints.
- [ANALYSIS] Best description: constitutionally authorised, statutorily instantiated.
- [FACT] Article 315(4): Governor request + President approval + UPSC agreement for State needs.
- [FACT] Article 320(2): two or more States may request a joint recruitment scheme for specially qualified services.

## Visual 59 - Three-device recall

315(2) = common COMMISSION  
315(4) = UPSC serves a STATE  
320(2) = common RECRUITMENT SCHEME

### Membership, tenure and acting arrangements

- [FACT] President appoints UPSC/Joint; Governor appoints SPSC.
- [FACT] Strength is not constitutionally fixed.
- [FACT] As nearly as may be half the members: ten years in specified government office; qualifying pre-1950 service counts.
- [FACT] Six years from entering office or age 65 UPSC / 62 SPSC and Joint, whichever earlier.
- [FACT] Resignation: President for UPSC/Joint; Governor for SPSC.
- [FACT] Acting Chair: another member appointed by President/Governor until entry/resumption.
- [FACT] No reappointment to the same office after expiry; test different-office progression under Article 319.

### Removal and suspension

#### Visual 60 - Article 317 compressed tree

MISBEHAVIOUR -> President reference -> Supreme Court inquiry/report -> President

DIRECT 317(3) -> insolvency / outside paid work / qualifying infirmity -> President

SUSPENSION AFTER REFERENCE:

UPSC/Joint -> President

SPSC -> Governor

- [FACT] Government-contract interest is deemed misbehaviour, subject to the incorporated-company exception.
- [LIMIT] Never write "Governor removes SPSC", "all grounds need SC inquiry" or "Parliament impeaches PSC members".

#### Article 318 and Article 319

- [FACT] President regulates UPSC/Joint member and staff number/conditions; Governor does so for SPSC.
- [FACT] Member conditions cannot be varied to disadvantage after appointment.

#### Visual 61 - Post-office memory grid

| Former      | Permitted PSC progression                |
|-------------|------------------------------------------|
| UPSC Chair  | none                                     |
| SPSC Chair  | UPSC Chair/member; another SPSC Chair    |
| UPSC member | UPSC Chair; SPSC Chair                   |
| SPSC member | UPSC Chair/member; same/other SPSC Chair |

- [LIMIT] Every row also bars other Union/State government employment.

### Functions and consultation

- [FACT] Article 320(1): examinations for respective services.
- [FACT] Article 320(3): methods; principles; suitability; discipline; official-duty legal costs; injury pension; referred matters.
- [FACT] Valid regulations may exempt specified matters/classes/circumstances.
- [FACT] Article 320(4): no required consultation on manner of Article 16(4) provision or giving effect to Article 335.
- [FACT] Exemption regulations must be laid for at least fourteen days and remain legislatively modifiable.
- [FACT] *Manbodhan Lal*: consultation directory, not mandatory; still an important safeguard.

## Visual 62 - Advice-to-accountability chain



## Extension, finance and reports

- [FACT] Article 321: legislative extension to local authorities, statutory bodies corporate and public institutions.
- [FACT] Article 322: UPSC/SPSC expenses charged on relevant Consolidated Fund.
- [FACT] Article 323: UPSC -> President -> Parliament; SPSC -> Governor -> State legislature; Joint -> each Governor for State-specific work -> each legislature.
- [LIMIT] Charged expenditure does not guarantee adequate capacity; reporting does not help if delayed or perfunctory.

## Recruitment boundaries and cross-links

### Visual 63 - Who owns what

| Stage                       | Owner                                  |
|-----------------------------|----------------------------------------|
| post/rule/roster            | government under law and equality code |
| exam/selection advice       | PSC where applicable                   |
| appointment order           | appointing authority                   |
| cadre/training/posting      | government/DoPT/cadre authority        |
| recruitment/service dispute | tribunal/court                         |
| additional public-body role | legislation under Article 321          |

- [FACT] Recommendation is not appointment.
- [FACT] *Shankarsan Dash*: no indefeasible appointment right; arbitrariness still prohibited.
- [FACT] *M.V. Thimmaiah*: limited review; no appellate re-selection.
- [FACT] *Ashok Kumar Yadav*: bias/arbitrariness controls expert selection.
- [FACT] *K. Manjusree + Tej Prakash Pathak*: stable, pre-declared lawful criteria.

## Lateral recruitment control

- [FACT] Analyse through Articles 14, 16 and 309; recruitment rule; post/level; mode; reservation; consultation regulation; procedure and reasons.
- [CURRENT] 15 March 2024 regulation: specified Group A/B up to level 13A through named modes.
- [LIMIT] Never call this a universal lateral-entry exemption.
- [ANALYSIS] Lateral recruitment is legitimate only as transparent specialist supplementation, not patronage or rule evasion.

## Examination integrity and current controls

- [CURRENT] Public Examinations Act commenced 21 June 2024; UPSC expressly in Schedule.
- [FACT] Coverage includes leakage, collusion, unauthorised access/assistance, answer/assessment tampering, digital/security manipulation, fake sites/exams/documents and organised crime, subject to statutory elements.
- [CURRENT] Rules cover CBT infrastructure, networks, audits, biometrics, question loading, invigilation, incident reporting and monitoring.
- [ANALYSIS] Best reform cycle: prevent -> detect -> record -> report -> investigate -> remedy -> learn.
- [LIMIT] Criminal law does not replace fair re-examination/result decisions, privacy, accessibility or grievance redress.

## Visual 64 - Final rapid-recall board

| Trap                            | Correct recall                    |
|---------------------------------|-----------------------------------|
| SPSC appointment/removal        | Governor / President              |
| Joint suspension                | President                         |
| SPSC suspension after reference | Governor                          |
| term start                      | entering office                   |
| UPSC/SPSC age                   | 65 / 62                           |
| near-half rule                  | ten years government office       |
| advice                          | advisory/directory                |
| rejected advice                 | Article 323 reasons memorandum    |
| reservation exception           | manner under 16(4)/335            |
| recommendation                  | no automatic appointment          |
| court                           | legality review, not merit appeal |
| 2024 exam law                   | expressly covers UPSC             |

## Mains verdict bank

- **Independence:** The Constitution secures the Commission against easy removal; reform must secure it against weak appointments, capacity dependence and distrust.
- **Advisory role:** Article 320 supplies reasoned expertise; Article 323 converts rejection into democratic accountability.
- **Federal design:** The SPSC is State-rooted in appointment and reporting but Union-insulated in removal.
- **Judicial review:** Courts preserve lawful merit by reviewing the rules, not by becoming the selectors.
- **Integrity:** Penalties punish a breached examination; secure systems, stable rules and remedy preserve the institution.
- **Lateral recruitment:** Specialist entry can supplement merit only when post-specific law, equality, reservation and transparency are stricter than patronage.

## Final limitations to write explicitly

1. No direct standalone PSC PYQ was verified in the audited 2018-2026 routing ledgers.
2. No current officeholder, vacancy, candidate-count or calendar fact is frozen.
3. No PSC appointment collegium is presented as enacted law.
4. Joint Commission is not reduced to either “purely statutory” or “automatically constitutional”.
5. Article 317 processes are kept differentiated.
6. Article 320(4) is not converted into a blanket exclusion of reservation matters.
7. The 2024 consultation amendment is not presented as a universal lateral-entry exemption.
8. Public Examinations Act coverage is verified for UPSC, but its existence is not treated as proof that every exam risk has been eliminated.

## COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

**High-yield use:** Follow the panels as one topic-specific conceptual atlas: root question, classifications, processes or arguments, comparisons, objections and a final answer-writing spine. This text-native master is separate from both graphical flowchart artifacts.

### ASCII MASTER FLOW - PANEL 1/12: Constitutional purpose and Articles 315-323

#### ROOT QUESTION

How can recruitment remain merit-based, representative and insulated from patronage?

#### EVOLUTION

Charter Act 1853 -> Macaulay Committee 1854 -> first PSC, 1 October 1926  
-> Government of India Act 1935 -> Constitution, 26 January 1950.

#### PART XIV, CHAPTER II

315 institution | 316 appointment/term | 317 removal/suspension  
318 service/staff rules | 319 post-office limits | 320 functions/consultation  
321 additional functions | 322 charged expenses | 323 reports.

#### DESIGN

independent constitutional advice -> lawful executive appointment -> public accountability.

#### LIMIT

merit is not one test score; Articles 14, 16, reservation and suitability remain operative.

### ASCII MASTER FLOW - PANEL 2/12: UPSC, SPSC and Joint PSC federal map

#### UNION PUBLIC SERVICE COMMISSION

Article 315(1) -> Union institution -> members appointed by President.

#### STATE PUBLIC SERVICE COMMISSION

Article 315(1) -> one for each State, subject to Article 315  
-> members appointed by Governor.

#### JOINT STATE PSC

Article 315(2) -> resolutions by participating State legislatures  
-> Parliament provides by law -> members appointed by President.

#### UPSC ASSISTANCE TO ONE STATE: ARTICLE 315(4)

Governor request + President approval + UPSC agreement.

#### JOINT RECRUITMENT: ARTICLE 320(2)

UPSC assists two or more States where special qualifications are required.

#### TRAP

constitutional source, creating instrument, appointing authority and service area differ.

## ASCII MASTER FLOW - PANEL 3/12: Article 316 membership and tenure

### APPOINTMENT

UPSC / Joint PSC -> President | SPSC -> Governor.

### COMPOSITION

number and service conditions are regulated under Article 318.

As nearly as may be, one-half of members must have held government office for ten years.

### TERM

six years from entering office.

UPSC member: age ceiling 65 | SPSC or Joint PSC member: age ceiling 62.

### RESIGNATION

UPSC / Joint PSC member -> President | SPSC member -> Governor.

### ACTING CHAIR: ARTICLE 316(1A)

President for UPSC/Joint PSC | Governor for SPSC.

### TRAP

appointment, resignation, acting appointment and removal do not use one authority.

## ASCII MASTER FLOW - PANEL 4/12: Removal, suspension and independence

### MISBEHAVIOUR ROUTE: ARTICLE 317(1)

President refers to Supreme Court -> Court inquiry and report

-> President may remove after constitutional finding.

### DIRECT PRESIDENTIAL GROUNDS: ARTICLE 317(3)

insolvency | paid employment outside office | infirmity of mind or body.

### DEEMED MISBEHAVIOUR: ARTICLE 317(4)

interest in specified government contracts or benefits.

### SUSPENSION PENDING INQUIRY: ARTICLE 317(2)

President for UPSC/Joint PSC | Governor for SPSC.

### ARTICLE 318

President/Governor regulates member conditions and staff; disadvantage bar after appointment.

### ARTICLE 319 + ARTICLE 322

post-office restrictions + expenses charged on Consolidated Fund.

### LIMIT

strong tenure and finance protection coexist with executive appointment and staff dependence.

## ASCII MASTER FLOW - PANEL 5/12: Article 320 examinations and consultation

### ARTICLE 320(1)

conduct examinations for appointments to Union and State services.

### ARTICLE 320(2)

UPSC assists two or more States in joint recruitment for specially qualified services.

### ARTICLE 320(3) CONSULTATION

methods of recruitment -> principles for appointments

-> promotions and transfers -> candidate suitability

-> disciplinary matters -> legal-cost claims -> injury-pension claims.

### DECISION CHAIN

service rules + vacancy + notice -> examination/selection -> recommendation

-> appointing government makes lawful decision.

### LIMITS

PSC advice is generally advisory | government owns posts and cadres

| consultation is not adjudication | recommendation is not appointment.

## ASCII MASTER FLOW - PANEL 6/12: Exemptions, extension and Article 323 reporting

### ARTICLE 320(3) PROVISIO

President/Governor may make consultation-exemption regulations

-> regulations must be laid before Parliament/State legislature.

### ARTICLE 320(4)

consultation is not required on the manner of Article 16(4) reservation

or giving effect to Article 335.

State of U.P. v. Manbodhan Lal Srivastava (1957)

consultation is directory; non-consultation alone does not invalidate action.

### ARTICLE 321

Parliament/State legislature may extend functions to local or other public institutions.

### ARTICLE 323

annual report -> President/Governor -> legislature

+ memorandum explaining non-acceptance of advice.

### SYNTHESIS

non-binding advice becomes constitutionally visible through reasoned legislative reporting.

## ASCII MASTER FLOW - PANEL 7/12: Recruitment ownership and lateral entry

### WHO OWNS WHAT?

Government / DoPT -> posts, recruitment rules, cadre, reservation and appointment.

UPSC / SPSC -> examination, selection and consultation assigned by Constitution/rules.

SSC / departmental body -> statutory or executive recruitment within assigned jurisdiction.

CAT / courts -> service-dispute adjudication and legality review.

### LATERAL ENTRY TEST

identify post -> recruitment rule -> mode and level -> consultation regulation

-> reservation/equality control -> transparent selection -> appointing authority.

### CURRENT CONTROL

15 March 2024 consultation-regulation amendment covers specified posts and methods.

It is not a universal constitutional category called lateral entry.

### TRAP

UPSC is not the entire civil-service system and CAT is not a recruitment agency.



## ASCII MASTER FLOW - PANEL 8/12: Selection case law and examination-integrity control

### FAIRNESS AND REVIEW

Ashok Kumar Yadav (1985) -> bias controls and proportionate interview design.  
K. Manjusree (2008) -> no undisclosed minimum criterion after process begins.  
Tej Prakash Pathak (2024) -> stable, lawful and non-arbitrary recruitment rules.  
Shankarsan Dash (1991) -> select-list entry gives no indefeasible appointment right.  
M.V. Thimmaiah (2007) -> courts do not become appellate selection boards.

### PUBLIC EXAMINATIONS ACT AND RULES, 2024

prevention -> secure centres/CBT -> incident reporting -> investigation -> penalty.

### INTEGRITY SYSTEM

conflict disclosure + audit trail + cyber security + calibrated transparency  
-> prompt reasoned remedy.

### LIMIT

criminal punishment cannot cure opaque rules, weak governance or inaccessible remedies.

## ASCII MASTER FLOW - PANEL 9/12: Neutrality, capacity, reform, traps and qualified answer synthesis

### INDEPENDENCE TEST

credible appointments + secure tenure + charged expenses + professional staff  
-> protected data/exams + reasoned decisions + legislative reporting + judicial review.

### REFORM

transparent criteria -> vacancy planning -> conflict/recusal rules  
-> common security standards -> faster grievance disposal  
-> SPSC capacity support without Union takeover.

### PRELIMS FIREWALL

Governor appoints SPSC but President removes | age 65 versus 62  
| Joint PSC needs parliamentary law | Article 320 advice is not binding  
| Article 319 restrictions differ | ECI, SSC, CAT and PSC are not interchangeable.

### PYQ AUDIT

no direct standalone 2018-2026 PSC PYQ verified; do not manufacture one.

### MAINS SPINE

constitutional purpose -> exact Article -> function -> safeguard  
-> practical deficit -> case-year -> accountable reform ->  
neutrality-with-representation verdict.

## ASCII MASTER FLOW - PANEL 10/12: Article 319 post-tenure eligibility matrix

### UPSC CHAIRMAN

no further employment under Union or State.

### SPSC CHAIRMAN

may become UPSC Chairman/member or Chairman of another SPSC.

### UPSC MEMBER

may become UPSC Chairman or an SPSC Chairman.

### SPSC MEMBER

may become UPSC Chairman/member or Chairman of same/another SPSC.

### COMMON LIMIT

no reappointment to the same office; constitutional office is not automatically government employment.

## ASCII MASTER FLOW - PANEL 11/12: Discipline consultation, exemptions and reporting loop

### ARTICLE 320(3)

recruitment methods -> appointments/promotions/transfers -> disciplinary matters -> legal-cost and injury-pension claims.

### ARTICLE 320(4) / PROVISIO

reservation matters and valid consultation regulations define exclusions.

### MANBODHAN LAL (1957)

consultation is directory; non-consultation does not automatically invalidate action.

### ARTICLE 323

annual report -> legislature -> memorandum of non-accepted advice with reasons.

### RESULT

advice is non-binding but rejection is accountable.

## ASCII MASTER FLOW - PANEL 12/12: Current integrity controls and commission reform

### DATED CONTROL – 28 AUGUST 2026

Dr Ajay Kumar is listed as UPSC Chairman. Public Examinations Act and Rules, 2024 apply to listed UPSC examinations. The 15 March 2024 consultation-regulation amendment covers specified deputation and related methods.

### INTEGRITY CHAIN

secure paper/CBT creation -> vendor controls -> incident reporting -> investigation -> reasoned candidate remedy.

### REFORM

transparent appointments -> filled vacancies -> fixed calendars -> recusal and interview rubrics -> published consultation memoranda -> interoperable but accountable State learning.